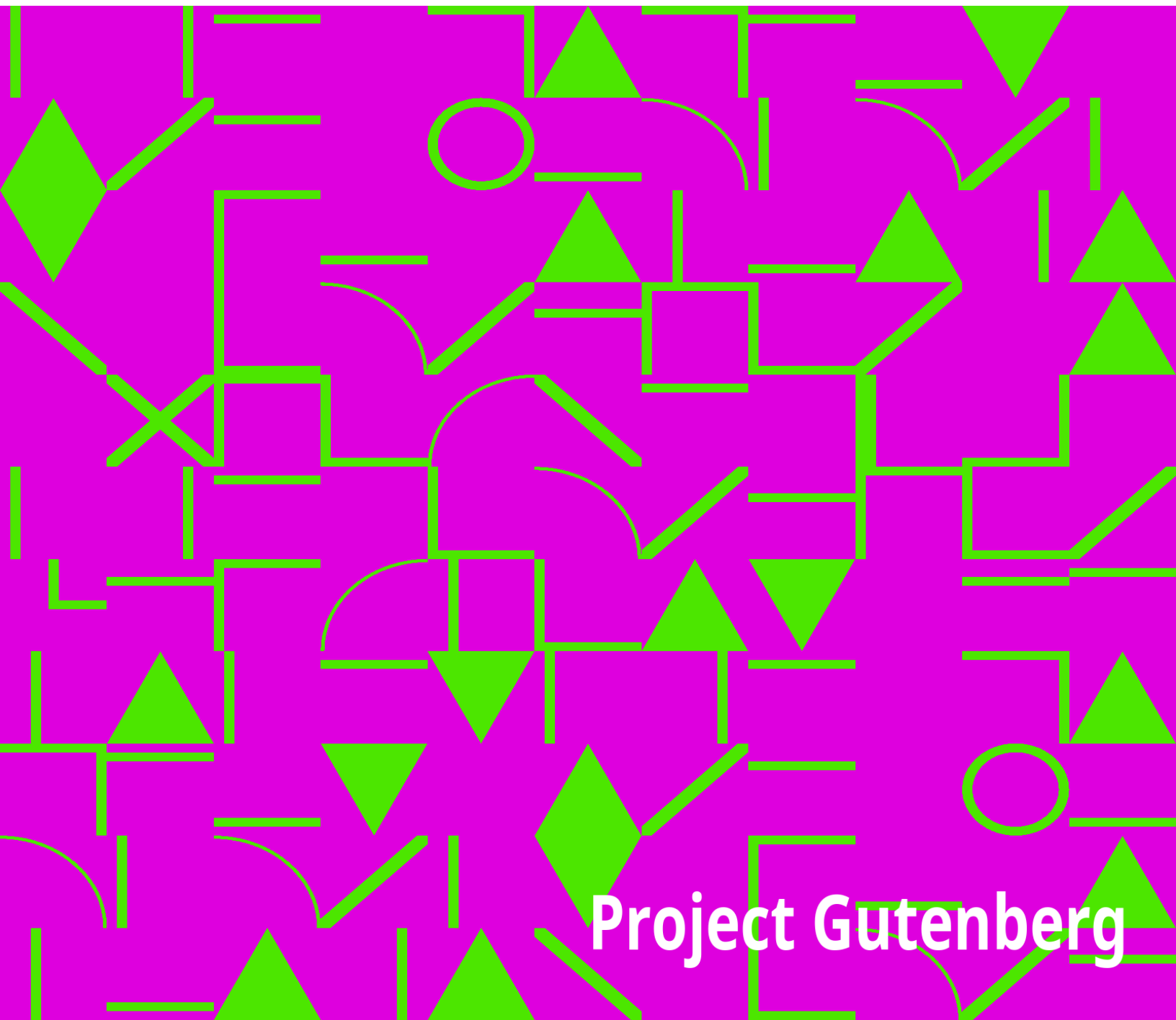


The Papers and Writings of Abraham Lincoln — Volume 4: The Lincoln-Douglas Debates

Abraham Lincoln and Arthur Brooks

An abstract geometric pattern consisting of various shapes like squares, triangles, circles, and lines, all in shades of blue and green, creating a complex, interlocking design.

Project Gutenberg

**The Papers and Writings of Abraham
Lincoln — Volume 4: The Lincoln-Douglas
Debates**

Abraham Lincoln and Arthur Brooks



Project Gutenberg

The Project Gutenberg eBook of The Papers and Writings of Abraham Lincoln — Volume 4: The Lincoln-Douglas Debates

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Papers and Writings of Abraham Lincoln — Volume 4: The Lincoln-Douglas Debates

Author: Abraham Lincoln

Editor: Arthur Brooks Lapsley

Release date: September 30, 2004 [eBook #2656]

Most recently updated: October 29, 2012

Language: English

Other information and formats: www.gutenberg.org/ebooks/2656

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK THE PAPERS
AND WRITINGS OF ABRAHAM LINCOLN — VOLUME 4: THE
LINCOLN-DOUGLAS DEBATES ***

THE PAPERS AND WRITINGS OF ABRAHAM LINCOLN

VOLUME FOUR

CONSTITUTIONAL EDITION

Edited by Arthur Brooks Lapsley

CONTENTS

[THE LINCOLN-DOUGLAS DEBATES II](#)

[LINCOLN AND DOUGLAS FOURTH DEBATE, AT
CHARLESTON, SEPTEMBER 18, 1858.](#)

[Mr. LINCOLN'S REJOINDER.](#)

[FIFTH JOINT DEBATE, AT GALESBURGH,
OCTOBER 7, 1858](#)

[SIXTH JOINT DEBATE, AT QUINCY, OCTOBER
13, 1858.](#)

[Mr. LINCOLN'S REJOINDER.](#)

[LAST DEBATE, AT ALTON, OCTOBER 15, 1858](#)

[Mr. LINCOLN'S REPLY](#)

**THE WRITINGS OF ABRAHAM
LINCOLN,
Volume Four**

**THE LINCOLN-DOUGLAS
DEBATES II**

LINCOLN AND DOUGLAS FOURTH DEBATE, AT CHARLESTON, SEPTEMBER 18, 1858.

LADIES AND GENTLEMEN:—It will be very difficult for an audience so large as this to hear distinctly what a speaker says, and consequently it is important that as profound silence be preserved as possible.

While I was at the hotel to-day, an elderly gentleman called upon me to know whether I was really in favor of producing a perfect equality between the negroes and white people. While I had not proposed to myself on this occasion to say much on that subject, yet as the question was asked me I thought I would occupy perhaps five minutes in saying something in regard to it. I will say, then, that I am not, nor ever have been, in favor of bringing about in any way the social and political equality of the white and black races; that I am not, nor ever have been, in favor of making voters or jurors of negroes, nor of qualifying them to hold office, nor to intermarry with white people; and I will say, in addition to this, that there is a physical difference between the white and black races which I believe will forever forbid the two races living together on terms of social and political equality. And in as much as they cannot so live, while they do remain together there must be the position of superior and inferior, and I as much as any other man am in favor of having the superior position assigned to the white race. I say upon this occasion I do not perceive that because the white man is to have the superior position the negro should be denied everything. I do not understand that because I do not want a negro woman for a slave I must necessarily want her for a wife. My understanding is that I can just let her alone. I am now in my fiftieth year, and I certainly never have had a black woman for either a slave or a wife. So it seems to me quite possible for us to get along without making either slaves or wives of negroes. I will add to this that I have never seen, to my knowledge, a man, woman, or child who was in favor of producing a perfect equality, social and political, between negroes and white men. I recollect of but one distinguished instance that I ever heard of so frequently as to be entirely satisfied of its correctness, and that is the case of Judge Douglas's old friend Colonel Richard M. Johnson. I will also add to the remarks I have made (for I am not going to enter at

large upon this subject), that I have never had the least apprehension that I or my friends would marry negroes if there was no law to keep them from it; but as Judge Douglas and his friends seem to be in great apprehension that they might, if there were no law to keep them from it, I give him the most solemn pledge that I will to the very last stand by the law of this State which forbids the marrying of white people with negroes. I will add one further word, which is this: that I do not understand that there is any place where an alteration of the social and political relations of the negro and the white man can be made, except in the State Legislature,—not in the Congress of the United States; and as I do not really apprehend the approach of any such thing myself, and as Judge Douglas seems to be in constant horror that some such danger is rapidly approaching, I propose as the best means to prevent it that the Judge be kept at home, and placed in the State Legislature to fight the measure. I do not propose dwelling longer at this time on this subject.

When Judge Trumbull, our other Senator in Congress, returned to Illinois in the month of August, he made a speech at Chicago, in which he made what may be called a charge against Judge Douglas, which I understand proved to be very offensive to him. The Judge was at that time out upon one of his speaking tours through the country, and when the news of it reached him, as I am informed, he denounced Judge Trumbull in rather harsh terms for having said what he did in regard to that matter. I was traveling at that time, and speaking at the same places with Judge Douglas on subsequent days, and when I heard of what Judge Trumbull had said of Douglas, and what Douglas had said back again, I felt that I was in a position where I could not remain entirely silent in regard to the matter. Consequently, upon two or three occasions I alluded to it, and alluded to it in no other wise than to say that in regard to the charge brought by Trumbull against Douglas, I personally knew nothing, and sought to say nothing about it; that I did personally know Judge Trumbull; that I believed him to be a man of veracity; that I believed him to be a man of capacity sufficient to know very well whether an assertion he was making, as a conclusion drawn from a set of facts, was true or false; and as a conclusion of my own from that, I stated it as my belief if Trumbull should ever be called upon, he would prove everything he had said. I said this upon two or three occasions. Upon a subsequent occasion, Judge Trumbull spoke again before an audience at Alton, and upon that occasion not only repeated his charge against Douglas,

but arrayed the evidence he relied upon to substantiate it. This speech was published at length; and subsequently at Jacksonville Judge Douglas alluded to the matter. In the course of his speech, and near the close of it, he stated in regard to myself what I will now read:

"Judge Douglas proceeded to remark that he should not hereafter occupy his time in refuting such charges made by Trumbull, but that, Lincoln having indorsed the character of Trumbull for veracity, he should hold him (Lincoln) responsible for the slanders."

I have done simply what I have told you, to subject me to this invitation to notice the charge. I now wish to say that it had not originally been my purpose to discuss that matter at all But in-as-much as it seems to be the wish of Judge Douglas to hold me responsible for it, then for once in my life I will play General Jackson, and to the just extent I take the responsibility.

I wish to say at the beginning that I will hand to the reporters that portion of Judge Trumbull's Alton speech which was devoted to this matter, and also that portion of Judge Douglas's speech made at Jacksonville in answer to it. I shall thereby furnish the readers of this debate with the complete discussion between Trumbull and Douglas. I cannot now read them, for the reason that it would take half of my first hour to do so. I can only make some comments upon them. Trumbull's charge is in the following words:

"Now, the charge is, that there was a plot entered into to have a constitution formed for Kansas, and put in force, without giving the people an opportunity to vote upon it, and that Mr. Douglas was in the plot."

I will state, without quoting further, for all will have an opportunity of reading it hereafter, that Judge Trumbull brings forward what he regards as sufficient evidence to substantiate this charge.

It will be perceived Judge Trumbull shows that Senator Bigler, upon the floor of the Senate, had declared there had been a conference among the senators, in which conference it was determined to have an enabling act passed for the people of Kansas to form a constitution under, and in this conference it was agreed among them that it was best not to have a provision for submitting the constitution to a vote of the people after it should be formed. He then brings forward to show, and showing, as he deemed, that Judge Douglas reported the bill back to the Senate with that clause stricken out. He then shows that there was a new clause inserted into

the bill, which would in its nature prevent a reference of the constitution back for a vote of the people,—if, indeed, upon a mere silence in the law, it could be assumed that they had the right to vote upon it. These are the general statements that he has made.

I propose to examine the points in Judge Douglas's speech in which he attempts to answer that speech of Judge Trumbull's. When you come to examine Judge Douglas's speech, you will find that the first point he makes is:

"Suppose it were true that there was such a change in the bill, and that I struck it out,—is that a proof of a plot to force a constitution upon them against their will?"

His striking out such a provision, if there was such a one in the bill, he argues, does not establish the proof that it was stricken out for the purpose of robbing the people of that right. I would say, in the first place, that that would be a most manifest reason for it. It is true, as Judge Douglas states, that many Territorial bills have passed without having such a provision in them. I believe it is true, though I am not certain, that in some instances constitutions framed under such bills have been submitted to a vote of the people with the law silent upon the subject; but it does not appear that they once had their enabling acts framed with an express provision for submitting the constitution to be framed to a vote of the people, then that they were stricken out when Congress did not mean to alter the effect of the law. That there have been bills which never had the provision in, I do not question; but when was that provision taken out of one that it was in? More especially does the evidence tend to prove the proposition that Trumbull advanced, when we remember that the provision was stricken out of the bill almost simultaneously with the time that Bigler says there was a conference among certain senators, and in which it was agreed that a bill should be passed leaving that out. Judge Douglas, in answering Trumbull, omits to attend to the testimony of Bigler, that there was a meeting in which it was agreed they should so frame the bill that there should be no submission of the constitution to a vote of the people. The Judge does not notice this part of it. If you take this as one piece of evidence, and then ascertain that simultaneously Judge Douglas struck out a provision that did require it to be submitted, and put the two together, I think it will make a pretty fair show of proof that Judge Douglas did, as Trumbull says, enter into a plot to

put in force a constitution for Kansas, without giving the people any opportunity of voting upon it.

But I must hurry on. The next proposition that Judge Douglas puts is this:

"But upon examination it turns out that the Toombs bill never did contain a clause requiring the constitution to be submitted."

This is a mere question of fact, and can be determined by evidence. I only want to ask this question: Why did not Judge Douglas say that these words were not stricken out of the Toomb's bill, or this bill from which it is alleged the provision was stricken out,—a bill which goes by the name of Toomb's, because he originally brought it forward? I ask why, if the Judge wanted to make a direct issue with Trumbull, did he not take the exact proposition Trumbull made in his speech, and say it was not stricken out? Trumbull has given the exact words that he says were in the Toomb's bill, and he alleges that when the bill came back, they were stricken out. Judge Douglas does not say that the words which Trumbull says were stricken out were not so stricken out, but he says there was no provision in the Toomb's bill to submit the constitution to a vote of the people. We see at once that he is merely making an issue upon the meaning of the words. He has not undertaken to say that Trumbull tells a lie about these words being stricken out, but he is really, when pushed up to it, only taking an issue upon the meaning of the words. Now, then, if there be any issue upon the meaning of the words, or if there be upon the question of fact as to whether these words were stricken out, I have before me what I suppose to be a genuine copy of the Toomb's bill, in which it can be shown that the words Trumbull says were in it were, in fact, originally there. If there be any dispute upon the fact, I have got the documents here to show they were there. If there be any controversy upon the sense of the words,—whether these words which were stricken out really constituted a provision for submitting the matter to a vote of the people,—as that is a matter of argument, I think I may as well use Trumbull's own argument. He says that the proposition is in these words:

"That the following propositions be and the same are hereby offered to the said Convention of the people of Kansas when formed, for their free acceptance or rejection; which, if accepted by the Convention and ratified by the people at the election for the adoption of the constitution, shall be obligatory upon the United States and the said State of Kansas."

Now, Trumbull alleges that these last words were stricken out of the bill when it came back, and he says this was a provision for submitting the constitution to a vote of the people; and his argument is this:

"Would it have been possible to ratify the land propositions at the election for the adoption of the constitution, unless such an election was to be held?"

This is Trumbull's argument. Now, Judge Douglas does not meet the charge at all, but he stands up and says there was no such proposition in that bill for submitting the constitution to be framed to a vote of the people. Trumbull admits that the language is not a direct provision for submitting it, but it is a provision necessarily implied from another provision. He asks you how it is possible to ratify the land proposition at the election for the adoption of the constitution, if there was no election to be held for the adoption of the constitution. And he goes on to show that it is not any less a law because the provision is put in that indirect shape than it would be if it were put directly. But I presume I have said enough to draw attention to this point, and I pass it by also.

Another one of the points that Judge Douglas makes upon Trumbull, and at very great length, is, that Trumbull, while the bill was pending, said in a speech in the Senate that he supposed the constitution to be made would have to be submitted to the people. He asks, if Trumbull thought so then, what ground is there for anybody thinking otherwise now? Fellow-citizens, this much may be said in reply: That bill had been in the hands of a party to which Trumbull did not belong. It had been in the hands of the committee at the head of which Judge Douglas stood. Trumbull perhaps had a printed copy of the original Toomb's bill. I have not the evidence on that point except a sort of inference I draw from the general course of business there. What alterations, or what provisions in the way of altering, were going on in committee, Trumbull had no means of knowing, until the altered bill was reported back. Soon afterwards, when it was reported back, there was a discussion over it, and perhaps Trumbull in reading it hastily in the altered form did not perceive all the bearings of the alterations. He was hastily borne into the debate, and it does not follow that because there was something in it Trumbull did not perceive, that something did not exist. More than this, is it true that what Trumbull did can have any effect on what Douglas did? Suppose Trumbull had been in the plot with these other men,

would that let Douglas out of it? Would it exonerate Douglas that Trumbull did n't then perceive he was in the plot? He also asks the question: Why did n't Trumbull propose to amend the bill, if he thought it needed any amendment? Why, I believe that everything Judge Trumbull had proposed, particularly in connection with this question of Kansas and Nebraska, since he had been on the floor of the Senate, had been promptly voted down by Judge Douglas and his friends. He had no promise that an amendment offered by him to anything on this subject would receive the slightest consideration. Judge Trumbull did bring to the notice of the Senate at that time the fact that there was no provision for submitting the constitution about to be made for the people of Kansas to a vote of the people. I believe I may venture to say that Judge Douglas made some reply to this speech of Judge Trumbull's, but he never noticed that part of it at all. And so the thing passed by. I think, then, the fact that Judge Trumbull offered no amendment does not throw much blame upon him; and if it did, it does not reach the question of fact as to what Judge Douglas was doing. I repeat, that if Trumbull had himself been in the plot, it would not at all relieve the others who were in it from blame. If I should be indicted for murder, and upon the trial it should be discovered that I had been implicated in that murder, but that the prosecuting witness was guilty too, that would not at all touch the question of my crime. It would be no relief to my neck that they discovered this other man who charged the crime upon me to be guilty too.

Another one of the points Judge Douglas makes upon Judge Trumbull is, that when he spoke in Chicago he made his charge to rest upon the fact that the bill had the provision in it for submitting the constitution to a vote of the people when it went into his Judge Douglas's hands, that it was missing when he reported it to the Senate, and that in a public speech he had subsequently said the alterations in the bill were made while it was in committee, and that they were made in consultation between him (Judge Douglas) and Toomb's. And Judge Douglas goes on to comment upon the fact of Trumbull's adducing in his Alton speech the proposition that the bill not only came back with that proposition stricken out, but with another clause and another provision in it, saying that "until the complete execution of this Act there shall be no election in said Territory,"—which, Trumbull argued, was not only taking the provision for submitting to a vote of the people out of the bill, but was adding an affirmative one, in that it prevented the people from exercising the right under a bill that was merely silent on

the question. Now, in regard to what he says, that Trumbull shifts the issue, that he shifts his ground,—and I believe he uses the term that, "it being proven false, he has changed ground," I call upon all of you, when you come to examine that portion of Trumbull's speech (for it will make a part of mine), to examine whether Trumbull has shifted his ground or not. I say he did not shift his ground, but that he brought forward his original charge and the evidence to sustain it yet more fully, but precisely as he originally made it. Then, in addition thereto, he brought in a new piece of evidence. He shifted no ground. He brought no new piece of evidence inconsistent with his former testimony; but he brought a new piece, tending, as he thought, and as I think, to prove his proposition. To illustrate: A man brings an accusation against another, and on trial the man making the charge introduces A and B to prove the accusation. At a second trial he introduces the same witnesses, who tell the same story as before, and a third witness, who tells the same thing, and in addition gives further testimony corroborative of the charge. So with Trumbull. There was no shifting of ground, nor inconsistency of testimony between the new piece of evidence and what he originally introduced.

But Judge Douglas says that he himself moved to strike out that last provision of the bill, and that on his motion it was stricken out and a substitute inserted. That I presume is the truth. I presume it is true that that last proposition was stricken out by Judge Douglas. Trumbull has not said it was not; Trumbull has himself said that it was so stricken out. He says: "I am now speaking of the bill as Judge Douglas reported it back. It was amended somewhat in the Senate before it passed, but I am speaking of it as he brought it back." Now, when Judge Douglas parades the fact that the provision was stricken out of the bill when it came back, he asserts nothing contrary to what Trumbull alleges. Trumbull has only said that he originally put it in, not that he did not strike it out. Trumbull says it was not in the bill when it went to the committee. When it came back it was in, and Judge Douglas said the alterations were made by him in consultation with Toomb's. Trumbull alleges, therefore, as his conclusion, that Judge Douglas put it in. Then, if Douglas wants to contradict Trumbull and call him a liar, let him say he did not put it in, and not that he did n't take it out again. It is said that a bear is sometimes hard enough pushed to drop a cub; and so I presume it was in this case. I presume the truth is that Douglas put it in, and afterward took it out. That, I take it, is the truth about it. Judge Trumbull

says one thing, Douglas says another thing, and the two don't contradict one another at all. The question is, what did he put it in for? In the first place, what did he take the other provision out of the bill for,—the provision which Trumbull argued was necessary for submitting the constitution to a vote of the people? What did he take that out for; and, having taken it out, what did he put this in for? I say that in the run of things it is not unlikely forces conspire to render it vastly expedient for Judge Douglas to take that latter clause out again. The question that Trumbull has made is that Judge Douglas put it in; and he don't meet Trumbull at all unless he denies that.

In the clause of Judge Douglas's speech upon this subject he uses this language toward Judge Trumbull. He says:

"He forges his evidence from beginning to end; and by falsifying the record, he endeavors to bolster up his false charge."

Well, that is a pretty serious statement—Trumbull forges his evidence from beginning to end. Now, upon my own authority I say that it is not true. What is a forgery? Consider the evidence that Trumbull has brought forward. When you come to read the speech, as you will be able to, examine whether the evidence is a forgery from beginning to end. He had the bill or document in his hand like that [holding up a paper]. He says that is a copy of the Toomb's bill,—the amendment offered by Toomb's. He says that is a copy of the bill as it was introduced and went into Judge Douglas's hands. Now, does Judge Douglas say that is a forgery? That is one thing Trumbull brought forward. Judge Douglas says he forged it from beginning to end! That is the "beginning," we will say. Does Douglas say that is a forgery? Let him say it to-day, and we will have a subsequent examination upon this subject. Trumbull then holds up another document like this, and says that is an exact copy of the bill as it came back in the amended form out of Judge Douglas's hands. Does Judge Douglas say that is a forgery? Does he say it in his general sweeping charge? Does he say so now? If he does not, then take this Toomb's bill and the bill in the amended form, and it only needs to compare them to see that the provision is in the one and not in the other; it leaves the inference inevitable that it was taken out.

But, while I am dealing with this question, let us see what Trumbull's other evidence is. One other piece of evidence I will read. Trumbull says there are in this original Toomb's bill these words:

"That the following propositions be and the same are hereby offered to the said Convention of the people of Kansas, when formed, for their free acceptance or rejection; which, if accepted by the Convention and ratified by the people at the election for the adoption of the constitution, shall be obligatory upon the United States and the said State of Kansas."

Now, if it is said that this is a forgery, we will open the paper here and see whether it is or not. Again, Trumbull says, as he goes along, that Mr. Bigler made the following statement in his place in the Senate, December 9, 1857:

"I was present when that subject was discussed by senators before the bill was introduced, and the question was raised and discussed, whether the constitution, when formed, should be submitted to a vote of the people. It was held by those most intelligent on the subject that, in view of all the difficulties surrounding that Territory, the danger of any experiment at that time of a popular vote, it would be better there should be no such provision in the Toomb's bill; and it was my understanding, in all the intercourse I had, that the Convention would make a constitution, and send it here, without submitting it to the popular vote."

Then Trumbull follows on:

"In speaking of this meeting again on the 21st December, 1857 [Congressional Globe, same vol., page 113], Senator Bigler said:

"Nothing was further from my mind than to allude to any social or confidential interview. The meeting was not of that character. Indeed, it was semi-official, and called to promote the public good. My recollection was clear that I left the conference under the impression that it had been deemed best to adopt measures to admit Kansas as a State through the agency of one popular election, and that for delegates to this Convention. This impression was stronger because I thought the spirit of the bill infringed upon the doctrine of non-intervention, to which I had great aversion; but with the hope of accomplishing a great good, and as no movement had been made in that direction in the Territory, I waived this objection, and concluded to support the measure. I have a few items of testimony as to the correctness of these impressions, and with their submission I shall be content. I have before me the bill reported by the senator from Illinois on the 7th of March, 1856, providing for the admission of Kansas as a State, the third section of which reads as follows:

"That the following propositions be, and the same are hereby offered to the said Convention of the people of Kansas, when formed, for their free acceptance or rejection; which, if accepted by the Convention and ratified by the people at the election for the adoption of the constitution, shall be obligatory upon the United States and the said State of Kansas."

The bill read in his place by the senator from Georgia on the 25th of June, and referred to the Committee on Territories, contained the same section word for word. Both these bills were under consideration at the conference referred to; but, sir, when the senator from Illinois reported the Toombs bill to the Senate with amendments, the next morning, it did not contain that portion of the third section which indicated to the Convention that the constitution should be approved by the people. The words "and ratified by the people at the election for the adoption of the constitution" had been stricken out.

Now, these things Trumbull says were stated by Bigler upon the floor of the Senate on certain days, and that they are recorded in the Congressional Globe on certain pages. Does Judge Douglas say this is a forgery? Does he say there is no such thing in the Congressional Globe? What does he mean when he says Judge Trumbull forges his evidence from beginning to end? So again he says in another place that Judge Douglas, in his speech, December 9, 1857 (Congressional Globe, part I., page 15), stated:

"That during the last session of Congress, I [Mr. Douglas] reported a bill from the Committee on Territories, to authorize the people of Kansas to assemble and form a constitution for themselves. Subsequently the senator from Georgia [Mr. Toombs] brought forward a substitute for my bill, which, after having been modified by him and myself in consultation, was passed by the Senate."

Now, Trumbull says this is a quotation from a speech of Douglas, and is recorded in the Congressional Globe. Is it a forgery? Is it there or not? It may not be there, but I want the Judge to take these pieces of evidence, and distinctly say they are forgeries if he dare do it.

[A voice: "He will."]

Well, sir, you had better not commit him. He gives other quotations,—another from Judge Douglas. He says:

"I will ask the senator to show me an intimation, from any one member of the Senate, in the whole debate on the Toombs bill, and in the Union,

from any quarter, that the constitution was not to be submitted to the people. I will venture to say that on all sides of the chamber it was so understood at the time. If the opponents of the bill had understood it was not, they would have made the point on it; and if they had made it, we should certainly have yielded to it, and put in the clause. That is a discovery made since the President found out that it was not safe to take it for granted that that would be done, which ought in fairness to have been done."

Judge Trumbull says Douglas made that speech, and it is recorded. Does Judge Douglas say it is a forgery, and was not true? Trumbull says somewhere, and I propose to skip it, but it will be found by any one who will read this debate, that he did distinctly bring it to the notice of those who were engineering the bill, that it lacked that provision; and then he goes on to give another quotation from Judge Douglas, where Judge Trumbull uses this language:

"Judge Douglas, however, on the same day and in the same debate, probably recollecting or being reminded of the fact that I had objected to the Toombs bill when pending that it did not provide for a submission of the constitution to the people, made another statement, which is to be found in the same volume of the Globe, page 22, in which he says: 'That the bill was silent on this subject was true, and my attention was called to that about the time it was passed; and I took the fair construction to be, that powers not delegated were reserved, and that of course the constitution would be submitted to the people.'

"Whether this statement is consistent with the statement just before made, that had the point been made it would have been yielded to, or that it was a new discovery, you will determine."

So I say. I do not know whether Judge Douglas will dispute this, and yet maintain his position that Trumbull's evidence "was forged from beginning to end." I will remark that I have not got these Congressional Globes with me. They are large books, and difficult to carry about, and if Judge Douglas shall say that on these points where Trumbull has quoted from them there are no such passages there, I shall not be able to prove they are there upon this occasion, but I will have another chance. Whenever he points out the forgery and says, "I declare that this particular thing which Trumbull has uttered is not to be found where he says it is," then my attention will be drawn to that, and I will arm myself for the contest, stating now that I have

not the slightest doubt on earth that I will find every quotation just where Trumbull says it is. Then the question is, How can Douglas call that a forgery? How can he make out that it is a forgery? What is a forgery? It is the bringing forward something in writing or in print purporting to be of certain effect when it is altogether untrue. If you come forward with my note for one hundred dollars when I have never given such a note, there is a forgery. If you come forward with a letter purporting to be written by me which I never wrote, there is another forgery. If you produce anything in writing or in print saying it is so and so, the document not being genuine, a forgery has been committed. How do you make this forgery when every piece of the evidence is genuine? If Judge Douglas does say these documents and quotations are false and forged, he has a full right to do so; but until he does it specifically, we don't know how to get at him. If he does say they are false and forged, I will then look further into it, and presume I can procure the certificates of the proper officers that they are genuine copies. I have no doubt each of these extracts will be found exactly where Trumbull says it is. Then I leave it to you if Judge Douglas, in making his sweeping charge that Judge Trumbull's evidence is forged from beginning to end, at all meets the case,—if that is the way to get at the facts. I repeat again, if he will point out which one is a forgery, I will carefully examine it, and if it proves that any one of them is really a forgery, it will not be me who will hold to it any longer. I have always wanted to deal with everyone I meet candidly and honestly. If I have made any assertion not warranted by facts, and it is pointed out to me, I will withdraw it cheerfully. But I do not choose to see Judge Trumbull calumniated, and the evidence he has brought forward branded in general terms "a forgery from beginning to end." This is not the legal way of meeting a charge, and I submit it to all intelligent persons, both friends of Judge Douglas and of myself, whether it is.

The point upon Judge Douglas is this: The bill that went into his hands had the provision in it for a submission of the constitution to the people; and I say its language amounts to an express provision for a submission, and that he took the provision out. He says it was known that the bill was silent in this particular; but I say, Judge Douglas, it was not silent when you got it. It was vocal with the declaration, when you got it, for a submission of the constitution to the people. And now, my direct question to Judge Douglas is, to answer why, if he deemed the bill silent on this point, he found it necessary to strike out those particular harmless words. If he had

found the bill silent and without this provision, he might say what he does now. If he supposes it was implied that the constitution would be submitted to a vote of the people, how could these two lines so encumber the statute as to make it necessary to strike them out? How could he infer that a submission was still implied, after its express provision had been stricken from the bill? I find the bill vocal with the provision, while he silenced it. He took it out, and although he took out the other provision preventing a submission to a vote of the people, I ask, Why did you first put it in? I ask him whether he took the original provision out, which Trumbull alleges was in the bill. If he admits that he did take it, I ask him what he did it for. It looks to us as if he had altered the bill. If it looks differently to him,—if he has a different reason for his action from the one we assign him—he can tell it. I insist upon knowing why he made the bill silent upon that point when it was vocal before he put his hands upon it.

I was told, before my last paragraph, that my time was within three minutes of being out. I presume it is expired now; I therefore close.

Mr. LINCOLN'S REJOINDER.

FELLOW-CITIZENS: It follows as a matter of course that a half-hour answer to a speech of an hour and a half can be but a very hurried one. I shall only be able to touch upon a few of the points suggested by Judge Douglas, and give them a brief attention, while I shall have to totally omit others for the want of time.

Judge Douglas has said to you that he has not been able to get from me an answer to the question whether I am in favor of negro citizenship. So far as I know the Judge never asked me the question before. He shall have no occasion to ever ask it again, for I tell him very frankly that I am not in favor of negro citizenship. This furnishes me an occasion for saying a few words upon the subject. I mentioned in a certain speech of mine, which has been printed, that the Supreme Court had decided that a negro could not possibly be made a citizen; and without saying what was my ground of complaint in regard to that, or whether I had any ground of complaint, Judge Douglas has from that thing manufactured nearly everything that he ever says about my disposition to produce an equality between the negroes and the white people. If any one will read my speech, he will find I mentioned that as one of the points decided in the course of the Supreme Court opinions, but I did not state what objection I had to it. But Judge Douglas tells the people what my objection was when I did not tell them myself. Now, my opinion is that the different States have the power to make a negro a citizen under the Constitution of the United States if they choose. The Dred Scott decision decides that they have not that power. If the State of Illinois had that power, I should be opposed to the exercise of it. That is all I have to say about it.

Judge Douglas has told me that he heard my speeches north and my speeches south; that he had heard me at Ottawa and at Freeport in the north and recently at Jonesboro in the south, and there was a very different cast of sentiment in the speeches made at the different points. I will not charge upon Judge Douglas that he wilfully misrepresents me, but I call upon every fair-minded man to take these speeches and read them, and I dare him to point out any difference between my speeches north and south. While I am

here perhaps I ought to say a word, if I have the time, in regard to the latter portion of the Judge's speech, which was a sort of declamation in reference to my having said I entertained the belief that this government would not endure half slave and half free. I have said so, and I did not say it without what seemed to me to be good reasons. It perhaps would require more time than I have now to set forth these reasons in detail; but let me ask you a few questions. Have we ever had any peace on this slavery question? When are we to have peace upon it, if it is kept in the position it now occupies? How are we ever to have peace upon it? That is an important question. To be sure, if we will all stop, and allow Judge Douglas and his friends to march on in their present career until they plant the institution all over the nation, here and wherever else our flag waves, and we acquiesce in it, there will be peace. But let me ask Judge Douglas how he is going to get the people to do that? They have been wrangling over this question for at least forty years. This was the cause of the agitation resulting in the Missouri Compromise; this produced the troubles at the annexation of Texas, in the acquisition of the territory acquired in the Mexican War. Again, this was the trouble which was quieted by the Compromise of 1850, when it was settled "forever" as both the great political parties declared in their National Conventions. That "forever" turned out to be just four years, when Judge Douglas himself reopened it. When is it likely to come to an end? He introduced the Nebraska Bill in 1854 to put another end to the slavery agitation. He promised that it would finish it all up immediately, and he has never made a speech since, until he got into a quarrel with the President about the Lecompton Constitution, in which he has not declared that we are just at the end of the slavery agitation. But in one speech, I think last winter, he did say that he did n't quite see when the end of the slavery agitation would come. Now he tells us again that it is all over and the people of Kansas have voted down the Lecompton Constitution. How is it over? That was only one of the attempts at putting an end to the slavery agitation—one of these "final settlements." Is Kansas in the Union? Has she formed a constitution that she is likely to come in under? Is not the slavery agitation still an open question in that Territory? Has the voting down of that constitution put an end to all the trouble? Is that more likely to settle it than every one of these previous attempts to settle the slavery agitation? Now, at this day in the history of the world we can no more foretell where the end of this slavery agitation will be than we can see the end of the world itself. The Nebraska-

Kansas Bill was introduced four years and a half ago, and if the agitation is ever to come to an end we may say we are four years and a half nearer the end. So, too, we can say we are four years and a half nearer the end of the world, and we can just as clearly see the end of the world as we can see the end of this agitation. The Kansas settlement did not conclude it. If Kansas should sink to-day, and leave a great vacant space in the earth's surface, this vexed question would still be among us. I say, then, there is no way of putting an end to the slavery agitation amongst us but to put it back upon the basis where our fathers placed it; no way but to keep it out of our new Territories,—to restrict it forever to the old States where it now exists. Then the public mind will rest in the belief that it is in the course of ultimate extinction. That is one way of putting an end to the slavery agitation.

The other way is for us to surrender and let Judge Douglas and his friends have their way and plant slavery over all the States; cease speaking of it as in any way a wrong; regard slavery as one of the common matters of property, and speak of negroes as we do of our horses and cattle. But while it drives on in its state of progress as it is now driving, and as it has driven for the last five years, I have ventured the opinion, and I say to-day, that we will have no end to the slavery agitation until it takes one turn or the other. I do not mean that when it takes a turn toward ultimate extinction it will be in a day, nor in a year, nor in two years. I do not suppose that in the most peaceful way ultimate extinction would occur in less than a hundred years at least; but that it will occur in the best way for both races, in God's own good time, I have no doubt. But, my friends, I have used up more of my time than I intended on this point.

Now, in regard to this matter about Trumbull and myself having made a bargain to sell out the entire Whig and Democratic parties in 1854: Judge Douglas brings forward no evidence to sustain his charge, except the speech Matheny is said to have made in 1856, in which he told a cock-and-bull story of that sort, upon the same moral principles that Judge Douglas tells it here to-day. This is the simple truth. I do not care greatly for the story, but this is the truth of it: and I have twice told Judge Douglas to his face that from beginning to end there is not one word of truth in it. I have called upon him for the proof, and he does not at all meet me as Trumbull met him upon that of which we were just talking, by producing the record. He did n't bring the record because there was no record for him to bring. When he asks if I am ready to indorse Trumbull's veracity after he has broken a bargain with

me, I reply that if Trumbull had broken a bargain with me I would not be likely to indorse his veracity; but I am ready to indorse his veracity because neither in that thing, nor in any other, in all the years that I have known Lyman Trumbull, have I known him to fail of his word or tell a falsehood large or small. It is for that reason that I indorse Lyman Trumbull.

[Mr. JAMES BROWN (Douglas postmaster): "What does Ford's History say about him?"]

Some gentleman asks me what Ford's History says about him. My own recollection is that Ford speaks of Trumbull in very disrespectful terms in several portions of his book, and that he talks a great deal worse of Judge Douglas. I refer you, sir, to the History for examination.

Judge Douglas complains at considerable length about a disposition on the part of Trumbull and myself to attack him personally. I want to attend to that suggestion a moment. I don't want to be unjustly accused of dealing illiberally or unfairly with an adversary, either in court or in a political canvass or anywhere else. I would despise myself if I supposed myself ready to deal less liberally with an adversary than I was willing to be treated myself. Judge Douglas in a general way, without putting it in a direct shape, revives the old charge against me in reference to the Mexican War. He does not take the responsibility of putting it in a very definite form, but makes a general reference to it. That charge is more than ten years old. He complains of Trumbull and myself because he says we bring charges against him one or two years old. He knows, too, that in regard to the Mexican War story the more respectable papers of his own party throughout the State have been compelled to take it back and acknowledge that it was a lie.

[Here Mr. LINCOLN turned to the crowd on the platform, and, selecting HON. ORLANDO B. FICKLIN, led him forward and said:]

I do not mean to do anything with Mr. FICKLIN except to present his face and tell you that he personally knows it to be a lie! He was a member of Congress at the only time I was in Congress, and [FICKLIN] knows that whenever there was an attempt to procure a vote of mine which would indorse the origin and justice of the war, I refused to give such indorsement and voted against it; but I never voted against the supplies for the army, and he knows, as well as Judge Douglas, that whenever a dollar was asked by way of compensation or otherwise for the benefit of the soldiers I gave all the votes that FICKLIN or Douglas did, and perhaps more.

[Mr. FICKLIN: My friends, I wish to say this in reference to the matter: Mr. Lincoln and myself are just as good personal friends as Judge Douglas and myself. In reference to this Mexican War, my recollection is that when Ashmun's resolution [amendment] was offered by Mr. Ashmun of Massachusetts, in which he declared that the Mexican War was unnecessary and unconstitutionally commenced by the President—my recollection is that Mr. Lincoln voted for that resolution.]

That is the truth. Now, you all remember that was a resolution censuring the President for the manner in which the war was begun. You know they have charged that I voted against the supplies, by which I starved the soldiers who were out fighting the battles of their country. I say that FICKLIN knows it is false. When that charge was brought forward by the Chicago Times, the Springfield Register [Douglas's organ] reminded the Times that the charge really applied to John Henry; and I do know that John Henry is now making speeches and fiercely battling for Judge Douglas. If the Judge now says that he offers this as a sort of setoff to what I said to-day in reference to Trumbull's charge, then I remind him that he made this charge before I said a word about Trumbull's. He brought this forward at Ottawa, the first time we met face to face; and in the opening speech that Judge Douglas made he attacked me in regard to a matter ten years old. Is n't he a pretty man to be whining about people making charges against him only two years old!

The Judge thinks it is altogether wrong that I should have dwelt upon this charge of Trumbull's at all. I gave the apology for doing so in my opening speech. Perhaps it did n't fix your attention. I said that when Judge Douglas was speaking at place—where I spoke on the succeeding day he used very harsh language about this charge. Two or three times afterward I said I had confidence in Judge Trumbull's veracity and intelligence; and my own opinion was, from what I knew of the character of Judge Trumbull, that he would vindicate his position and prove whatever he had stated to be true. This I repeated two or three times; and then I dropped it, without saying anything more on the subject for weeks—perhaps a month. I passed it by without noticing it at all till I found, at Jacksonville, Judge Douglas in the plenitude of his power is not willing to answer Trumbull and let me alone, but he comes out there and uses this language: "He should not hereafter occupy his time in refuting such charges made by Trumbull but that, Lincoln having indorsed the character of Trumbull for veracity, he should

hold him [Lincoln] responsible for the slanders." What was Lincoln to do? Did he not do right, when he had the fit opportunity of meeting Judge Douglas here, to tell him he was ready for the responsibility? I ask a candid audience whether in doing thus Judge Douglas was not the assailant rather than I? Here I meet him face to face, and say I am ready to take the responsibility, so far as it rests on me.

Having done so I ask the attention of this audience to the question whether I have succeeded in sustaining the charge, and whether Judge Douglas has at all succeeded in rebutting it? You all heard me call upon him to say which of these pieces of evidence was a forgery. Does he say that what I present here as a copy of the original Toombs bill is a forgery? Does he say that what I present as a copy of the bill reported by himself is a forgery, or what is presented as a transcript from the Globe of the quotations from Bigler's speech is a forgery? Does he say the quotations from his own speech are forgeries? Does he say this transcript from Trumbull's speech is a forgery?

["He didn't deny one of them."]

I would then like to know how it comes about that when each piece of a story is true the whole story turns out false. I take it these people have some sense; they see plainly that Judge Douglas is playing cuttle-fish, a small species of fish that has no mode of defending itself when pursued except by throwing out a black fluid, which makes the water so dark the enemy cannot see it, and thus it escapes. Ain't the Judge playing the cuttle-fish?

Now, I would ask very special attention to the consideration of Judge Douglas's speech at Jacksonville; and when you shall read his speech of to-day, I ask you to watch closely and see which of these pieces of testimony, every one of which he says is a forgery, he has shown to be such. Not one of them has he shown to be a forgery. Then I ask the original question, if each of the pieces of testimony is true, how is it possible that the whole is a falsehood?

In regard to Trumbull's charge that he [Douglas] inserted a provision into the bill to prevent the constitution being submitted to the people, what was his answer? He comes here and reads from the Congressional Globe to show that on his motion that provision was struck out of the bill. Why, Trumbull has not said it was not stricken out, but Trumbull says he [Douglas] put it in; and it is no answer to the charge to say he afterwards

took it out. Both are perhaps true. It was in regard to that thing precisely that I told him he had dropped the cub. Trumbull shows you that by his introducing the bill it was his cub. It is no answer to that assertion to call Trumbull a liar merely because he did not specially say that Douglas struck it out. Suppose that were the case, does it answer Trumbull? I assert that you [pointing to an individual] are here to-day, and you undertake to prove me a liar by showing that you were in Mattoon yesterday. I say that you took your hat off your head, and you prove me a liar by putting it on your head. That is the whole force of Douglas's argument.

Now, I want to come back to my original question. Trumbull says that Judge Douglas had a bill with a provision in it for submitting a constitution to be made to a vote of the people of Kansas. Does Judge Douglas deny that fact? Does he deny that the provision which Trumbull reads was put in that bill? Then Trumbull says he struck it out. Does he dare to deny that? He does not, and I have the right to repeat the question,—Why Judge Douglas took it out? Bigler has said there was a combination of certain senators, among whom he did not include Judge Douglas, by which it was agreed that the Kansas Bill should have a clause in it not to have the constitution formed under it submitted to a vote of the people. He did not say that Douglas was among them, but we prove by another source that about the same time Douglas comes into the Senate with that provision stricken out of the bill. Although Bigler cannot say they were all working in concert, yet it looks very much as if the thing was agreed upon and done with a mutual understanding after the conference; and while we do not know that it was absolutely so, yet it looks so probable that we have a right to call upon the man who knows the true reason why it was done to tell what the true reason was. When he will not tell what the true reason was, he stands in the attitude of an accused thief who has stolen goods in his possession, and when called to account refuses to tell where he got them. Not only is this the evidence, but when he comes in with the bill having the provision stricken out, he tells us in a speech, not then but since, that these alterations and modifications in the bill had been made by HIM, in consultation with Toombs, the originator of the bill. He tells us the same to-day. He says there were certain modifications made in the bill in committee that he did not vote for. I ask you to remember, while certain amendments were made which he disapproved of, but which a majority of the committee voted in, he has himself told us that in this particular the alterations and

modifications were made by him, upon consultation with Toombs. We have his own word that these alterations were made by him, and not by the committee. Now, I ask, what is the reason Judge Douglas is so chary about coming to the exact question? What is the reason he will not tell you anything about How it was made, BY WHOM it was made, or that he remembers it being made at all? Why does he stand playing upon the meaning of words and quibbling around the edges of the evidence? If he can explain all this, but leaves it unexplained, I have the right to infer that Judge Douglas understood it was the purpose of his party, in engineering that bill through, to make a constitution, and have Kansas come into the Union with that constitution, without its being submitted to a vote of the people. If he will explain his action on this question, by giving a better reason for the facts that happened than he has done, it will be satisfactory. But until he does that—until he gives a better or more plausible reason than he has offered against the evidence in the case—I suggest to him it will not avail him at all that he swells himself up, takes on dignity, and calls people liars. Why, sir, there is not a word in Trumbull's speech that depends on Trumbull's veracity at all. He has only arrayed the evidence and told you what follows as a matter of reasoning. There is not a statement in the whole speech that depends on Trumbull's word. If you have ever studied geometry, you remember that by a course of reasoning Euclid proves that all the angles in a triangle are equal to two right angles. Euclid has shown you how to work it out. Now, if you undertake to disprove that proposition, and to show that it is erroneous, would you prove it to be false by calling Euclid a liar? They tell me that my time is out, and therefore I close.

FIFTH JOINT DEBATE, AT GALESBURGH, OCTOBER 7, 1858

Mr. LINCOLN'S REPLY.

MY FELLOW-CITIZENS: A very large portion of the speech which Judge Douglas has addressed to you has previously been delivered and put in print. I do not mean that for a hit upon the Judge at all.—If I had not been interrupted, I was going to say that such an answer as I was able to make to a very large portion of it had already been more than once made and published. There has been an opportunity afforded to the public to see our respective views upon the topics discussed in a large portion of the speech which he has just delivered. I make these remarks for the purpose of excusing myself for not passing over the entire ground that the Judge has traversed. I however desire to take up some of the points that he has attended to, and ask your attention to them, and I shall follow him backwards upon some notes which I have taken, reversing the order, by beginning where he concluded.

The Judge has alluded to the Declaration of Independence, and insisted that negroes are not included in that Declaration; and that it is a slander upon the framers of that instrument to suppose that negroes were meant therein; and he asks you: Is it possible to believe that Mr. Jefferson, who penned the immortal paper, could have supposed himself applying the language of that instrument to the negro race, and yet held a portion of that race in slavery? Would he not at once have freed them? I only have to remark upon this part of the Judge's speech (and that, too, very briefly, for I shall not detain myself, or you, upon that point for any great length of time), that I believe the entire records of the world, from the date of the Declaration of Independence up to within three years ago, may be searched in vain for one single affirmation, from one single man, that the negro was not included in the Declaration of Independence; I think I may defy Judge Douglas to show that he ever said so, that Washington ever said so, that any President ever said so, that any member of Congress ever said so, or that

any living man upon the whole earth ever said so, until the necessities of the present policy of the Democratic party, in regard to slavery, had to invent that affirmation. And I will remind Judge Douglas and this audience that while Mr. Jefferson was the owner of slaves, as undoubtedly he was, in speaking upon this very subject he used the strong language that "he trembled for his country when he remembered that God was just"; and I will offer the highest premium in my power to Judge Douglas if he will show that he, in all his life, ever uttered a sentiment at all akin to that of Jefferson.

The next thing to which I will ask your attention is the Judge's comments upon the fact, as he assumes it to be, that we cannot call our public meetings as Republican meetings; and he instances Tazewell County as one of the places where the friends of Lincoln have called a public meeting and have not dared to name it a Republican meeting. He instances Monroe County as another, where Judge Trumbull and Jehu Baker addressed the persons whom the Judge assumes to be the friends of Lincoln calling them the "Free Democracy." I have the honor to inform Judge Douglas that he spoke in that very county of Tazewell last Saturday, and I was there on Tuesday last; and when he spoke there, he spoke under a call not venturing to use the word "Democrat." [Turning to Judge Douglas.] what think you of this?

So, again, there is another thing to which I would ask the Judge's attention upon this subject. In the contest of 1856 his party delighted to call themselves together as the "National Democracy"; but now, if there should be a notice put up anywhere for a meeting of the "National Democracy," Judge Douglas and his friends would not come. They would not suppose themselves invited. They would understand that it was a call for those hateful postmasters whom he talks about.

Now a few words in regard to these extracts from speeches of mine which Judge Douglas has read to you, and which he supposes are in very great contrast to each other. Those speeches have been before the public for a considerable time, and if they have any inconsistency in them, if there is any conflict in them, the public have been able to detect it. When the Judge says, in speaking on this subject, that I make speeches of one sort for the people of the northern end of the State, and of a different sort for the southern people, he assumes that I do not understand that my speeches will

be put in print and read north and south. I knew all the while that the speech that I made at Chicago, and the one I made at Jonesboro and the one at Charleston, would all be put in print, and all the reading and intelligent men in the community would see them and know all about my opinions. And I have not supposed, and do not now suppose, that there is any conflict whatever between them. But the Judge will have it that if we do not confess that there is a sort of inequality between the white and black races which justifies us in making them slaves, we must then insist that there is a degree of equality that requires us to make them our wives. Now, I have all the while taken a broad distinction in regard to that matter; and that is all there is in these different speeches which he arrays here; and the entire reading of either of the speeches will show that that distinction was made. Perhaps by taking two parts of the same speech he could have got up as much of a conflict as the one he has found. I have all the while maintained that in so far as it should be insisted that there was an equality between the white and black races that should produce a perfect social and political equality, it was an impossibility. This you have seen in my printed speeches, and with it I have said that in their right to "life, liberty, and the pursuit of happiness," as proclaimed in that old Declaration, the inferior races are our equals. And these declarations I have constantly made in reference to the abstract moral question, to contemplate and consider when we are legislating about any new country which is not already cursed with the actual presence of the evil,—slavery. I have never manifested any impatience with the necessities that spring from the actual presence of black people amongst us, and the actual existence of slavery amongst us where it does already exist; but I have insisted that, in legislating for new countries where it does not exist there is no just rule other than that of moral and abstract right! With reference to those new countries, those maxims as to the right of a people to "life, liberty, and the pursuit of happiness" were the just rules to be constantly referred to. There is no misunderstanding this, except by men interested to misunderstand it. I take it that I have to address an intelligent and reading community, who will peruse what I say, weigh it, and then judge whether I advanced improper or unsound views, or whether I advanced hypocritical, and deceptive, and contrary views in different portions of the country. I believe myself to be guilty of no such thing as the latter, though, of course, I cannot claim that I am entirely free from all error in the opinions I advance.

The Judge has also detained us awhile in regard to the distinction between his party and our party. His he assumes to be a national party, ours a sectional one. He does this in asking the question whether this country has any interest in the maintenance of the Republican party. He assumes that our party is altogether sectional, that the party to which he adheres is national; and the argument is, that no party can be a rightful party—and be based upon rightful principles—unless it can announce its principles everywhere. I presume that Judge Douglas could not go into Russia and announce the doctrine of our national Democracy; he could not denounce the doctrine of kings and emperors and monarchies in Russia; and it may be true of this country that in some places we may not be able to proclaim a doctrine as clearly true as the truth of democracy, because there is a section so directly opposed to it that they will not tolerate us in doing so. Is it the true test of the soundness of a doctrine that in some places people won't let you proclaim it? Is that the way to test the truth of any doctrine? Why, I understood that at one time the people of Chicago would not let Judge Douglas preach a certain favorite doctrine of his. I commend to his consideration the question whether he takes that as a test of the unsoundness of what he wanted to preach.

There is another thing to which I wish to ask attention for a little while on this occasion. What has always been the evidence brought forward to prove that the Republican party is a sectional party? The main one was that in the Southern portion of the Union the people did not let the Republicans proclaim their doctrines amongst them. That has been the main evidence brought forward,—that they had no supporters, or substantially none, in the Slave States. The South have not taken hold of our principles as we announce them; nor does Judge Douglas now grapple with those principles. We have a Republican State Platform, laid down in Springfield in June last stating our position all the way through the questions before the country. We are now far advanced in this canvass. Judge Douglas and I have made perhaps forty speeches apiece, and we have now for the fifth time met face to face in debate, and up to this day I have not found either Judge Douglas or any friend of his taking hold of the Republican platform, or laying his finger upon anything in it that is wrong. I ask you all to recollect that. Judge Douglas turns away from the platform of principles to the fact that he can find people somewhere who will not allow us to announce those principles. If he had great confidence that our principles were wrong, he would take

hold of them and demonstrate them to be wrong. But he does not do so. The only evidence he has of their being wrong is in the fact that there are people who won't allow us to preach them. I ask again, is that the way to test the soundness of a doctrine?

I ask his attention also to the fact that by the rule of nationality he is himself fast becoming sectional. I ask his attention to the fact that his speeches would not go as current now south of the Ohio River as they have formerly gone there I ask his attention to the fact that he felicitates himself to-day that all the Democrats of the free States are agreeing with him, while he omits to tell us that the Democrats of any slave State agree with him. If he has not thought of this, I commend to his consideration the evidence in his own declaration, on this day, of his becoming sectional too. I see it rapidly approaching. Whatever may be the result of this ephemeral contest between Judge Douglas and myself, I see the day rapidly approaching when his pill of sectionalism, which he has been thrusting down the throats of Republicans for years past, will be crowded down his own throat.

Now, in regard to what Judge Douglas said (in the beginning of his speech) about the Compromise of 1850 containing the principles of the Nebraska Bill, although I have often presented my views upon that subject, yet as I have not done so in this canvass, I will, if you please, detain you a little with them. I have always maintained, so far as I was able, that there was nothing of the principle of the Nebraska Bill in the Compromise of 1850 at all,—nothing whatever. Where can you find the principle of the Nebraska Bill in that Compromise? If anywhere, in the two pieces of the Compromise organizing the Territories of New Mexico and Utah. It was expressly provided in these two acts that when they came to be admitted into the Union they should be admitted with or without slavery, as they should choose, by their own constitutions. Nothing was said in either of those acts as to what was to be done in relation to slavery during the Territorial existence of those Territories, while Henry Clay constantly made the declaration (Judge Douglas recognizing him as a leader) that, in his opinion, the old Mexican laws would control that question during the Territorial existence, and that these old Mexican laws excluded slavery. How can that be used as a principle for declaring that during the Territorial existence as well as at the time of framing the constitution the people, if you please, might have slaves if they wanted them? I am not discussing the question whether it is right or wrong; but how are the New Mexican and

Utah laws patterns for the Nebraska Bill? I maintain that the organization of Utah and New Mexico did not establish a general principle at all. It had no feature of establishing a general principle. The acts to which I have referred were a part of a general system of Compromises. They did not lay down what was proposed as a regular policy for the Territories, only an agreement in this particular case to do in that way, because other things were done that were to be a compensation for it. They were allowed to come in in that shape, because in another way it was paid for, considering that as a part of that system of measures called the Compromise of 1850, which finally included half-a-dozen acts. It included the admission of California as a free State, which was kept out of the Union for half a year because it had formed a free constitution. It included the settlement of the boundary of Texas, which had been undefined before, which was in itself a slavery question; for if you pushed the line farther west, you made Texas larger, and made more slave territory; while, if you drew the line toward the east, you narrowed the boundary and diminished the domain of slavery, and by so much increased free territory. It included the abolition of the slave trade in the District of Columbia. It included the passage of a new Fugitive Slave law. All these things were put together, and, though passed in separate acts, were nevertheless, in legislation (as the speeches at the time will show), made to depend upon each other. Each got votes with the understanding that the other measures were to pass, and by this system of compromise, in that series of measures, those two bills—the New Mexico and Utah bills—were passed: and I say for that reason they could not be taken as models, framed upon their own intrinsic principle, for all future Territories. And I have the evidence of this in the fact that Judge Douglas, a year afterward, or more than a year afterward, perhaps, when he first introduced bills for the purpose of framing new Territories, did not attempt to follow these bills of New Mexico and Utah; and even when he introduced this Nebraska Bill, I think you will discover that he did not exactly follow them. But I do not wish to dwell at great length upon this branch of the discussion. My own opinion is, that a thorough investigation will show most plainly that the New Mexico and Utah bills were part of a system of compromise, and not designed as patterns for future Territorial legislation; and that this Nebraska Bill did not follow them as a pattern at all.

The Judge tells, in proceeding, that he is opposed to making any odious distinctions between free and slave States. I am altogether unaware that the

Republicans are in favor of making any odious distinctions between the free and slave States. But there is still a difference, I think, between Judge Douglas and the Republicans in this. I suppose that the real difference between Judge Douglas and his friends, and the Republicans on the contrary, is, that the Judge is not in favor of making any difference between slavery and liberty; that he is in favor of eradicating, of pressing out of view, the questions of preference in this country for free or slave institutions; and consequently every sentiment he utters discards the idea that there is any wrong in slavery. Everything that emanates from him or his coadjutors in their course of policy carefully excludes the thought that there is anything wrong in slavery. All their arguments, if you will consider them, will be seen to exclude the thought that there is anything whatever wrong in slavery. If you will take the Judge's speeches, and select the short and pointed sentences expressed by him,—as his declaration that he "don't care whether slavery is voted up or down,"—you will see at once that this is perfectly logical, if you do not admit that slavery is wrong. If you do admit that it is wrong, Judge Douglas cannot logically say he don't care whether a wrong is voted up or voted down. Judge Douglas declares that if any community wants slavery they have a right to have it. He can say that logically, if he says that there is no wrong in slavery; but if you admit that there is a wrong in it, he cannot logically say that anybody has a right to do wrong. He insists that upon the score of equality the owners of slaves and owners of property—of horses and every other sort of property—should be alike, and hold them alike in a new Territory. That is perfectly logical if the two species of property are alike and are equally founded in right. But if you admit that one of them is wrong, you cannot institute any equality between right and wrong. And from this difference of sentiment,—the belief on the part of one that the institution is wrong, and a policy springing from that belief which looks to the arrest of the enlargement of that wrong, and this other sentiment, that it is no wrong, and a policy sprung from that sentiment, which will tolerate no idea of preventing the wrong from growing larger, and looks to there never being an end to it through all the existence of things,—arises the real difference between Judge Douglas and his friends on the one hand and the Republicans on the other. Now, I confess myself as belonging to that class in the country who contemplate slavery as a moral, social, and political evil, having due regard for its actual existence amongst us and the difficulties of getting rid of it in any

satisfactory way, and to all the constitutional obligations which have been thrown about it; but, nevertheless, desire a policy that looks to the prevention of it as a wrong, and looks hopefully to the time when as a wrong it may come to an end.

Judge Douglas has again, for, I believe, the fifth time, if not the seventh, in my presence, reiterated his charge of a conspiracy or combination between the National Democrats and Republicans. What evidence Judge Douglas has upon this subject I know not, inasmuch as he never favors us with any. I have said upon a former occasion, and I do not choose to suppress it now, that I have no objection to the division in the Judge's party. He got it up himself. It was all his and their work. He had, I think, a great deal more to do with the steps that led to the Lecompton Constitution than Mr. Buchanan had; though at last, when they reached it, they quarreled over it, and their friends divided upon it. I am very free to confess to Judge Douglas that I have no objection to the division; but I defy the Judge to show any evidence that I have in any way promoted that division, unless he insists on being a witness himself in merely saying so. I can give all fair friends of Judge Douglas here to understand exactly the view that Republicans take in regard to that division. Don't you remember how two years ago the opponents of the Democratic party were divided between Fremont and Fillmore? I guess you do. Any Democrat who remembers that division will remember also that he was at the time very glad of it, and then he will be able to see all there is between the National Democrats and the Republicans. What we now think of the two divisions of Democrats, you then thought of the Fremont and Fillmore divisions. That is all there is of it.

But if the Judge continues to put forward the declaration that there is an unholy and unnatural alliance between the Republicans and the National Democrats, I now want to enter my protest against receiving him as an entirely competent witness upon that subject. I want to call to the Judge's attention an attack he made upon me in the first one of these debates, at Ottawa, on the 21st of August. In order to fix extreme Abolitionism upon me, Judge Douglas read a set of resolutions which he declared had been passed by a Republican State Convention, in October, 1854, at Springfield, Illinois, and he declared I had taken part in that Convention. It turned out that although a few men calling themselves an anti-Nebraska State Convention had sat at Springfield about that time, yet neither did I take any part in it, nor did it pass the resolutions or any such resolutions as Judge

Douglas read. So apparent had it become that the resolutions which he read had not been passed at Springfield at all, nor by a State Convention in which I had taken part, that seven days afterward, at Freeport, Judge Douglas declared that he had been misled by Charles H. Lanphier, editor of the State Register, and Thomas L. Harris, member of Congress in that district, and he promised in that speech that when he went to Springfield he would investigate the matter. Since then Judge Douglas has been to Springfield, and I presume has made the investigation; but a month has passed since he has been there, and, so far as I know, he has made no report of the result of his investigation. I have waited as I think sufficient time for the report of that investigation, and I have some curiosity to see and hear it. A fraud, an absolute forgery was committed, and the perpetration of it was traced to the three,—Lanphier, Harris, and Douglas. Whether it can be narrowed in any way so as to exonerate any one of them, is what Judge Douglas's report would probably show.

It is true that the set of resolutions read by Judge Douglas were published in the Illinois State Register on the 16th of October, 1854, as being the resolutions of an anti-Nebraska Convention which had sat in that same month of October, at Springfield. But it is also true that the publication in the Register was a forgery then, and the question is still behind, which of the three, if not all of them, committed that forgery. The idea that it was done by mistake is absurd. The article in the Illinois State Register contains part of the real proceedings of that Springfield Convention, showing that the writer of the article had the real proceedings before him, and purposely threw out the genuine resolutions passed by the Convention and fraudulently substituted the others. Lanphier then, as now, was the editor of the Register, so that there seems to be but little room for his escape. But then it is to be borne in mind that Lanphier had less interest in the object of that forgery than either of the other two. The main object of that forgery at that time was to beat Yates and elect Harris to Congress, and that object was known to be exceedingly dear to Judge Douglas at that time. Harris and Douglas were both in Springfield when the Convention was in session, and although they both left before the fraud appeared in the Register, subsequent events show that they have both had their eyes fixed upon that Convention.

The fraud having been apparently successful upon the occasion, both Harris and Douglas have more than once since then been attempting to put

it to new uses. As the fisherman's wife, whose drowned husband was brought home with his body full of eels, said when she was asked what was to be done with him, "Take the eels out and set him again," so Harris and Douglas have shown a disposition to take the eels out of that stale fraud by which they gained Harris's election, and set the fraud again more than once. On the 9th of July, 1856, Douglas attempted a repetition of it upon Trumbull on the floor of the Senate of the United States, as will appear from the appendix of the Congressional Globe of that date.

On the 9th of August, Harris attempted it again upon Norton in the House of Representatives, as will appear by the same documents,—the appendix to the Congressional Globe of that date. On the 21st of August last, all three—Lanphier, Douglas, and Harris—reattempted it upon me at Ottawa. It has been clung to and played out again and again as an exceedingly high trump by this blessed trio. And now that it has been discovered publicly to be a fraud we find that Judge Douglas manifests no surprise at it at all. He makes no complaint of Lanphier, who must have known it to be a fraud from the beginning. He, Lanphier, and Harris are just as cozy now and just as active in the concoction of new schemes as they were before the general discovery of this fraud. Now, all this is very natural if they are all alike guilty in that fraud, and it is very unnatural if any one of them is innocent. Lanphier perhaps insists that the rule of honor among thieves does not quite require him to take all upon himself, and consequently my friend Judge Douglas finds it difficult to make a satisfactory report upon his investigation. But meanwhile the three are agreed that each is "a most honorable man."

Judge Douglas requires an indorsement of his truth and honor by a re-election to the United States Senate, and he makes and reports against me and against Judge Trumbull, day after day, charges which we know to be utterly untrue, without for a moment seeming to think that this one unexplained fraud, which he promised to investigate, will be the least drawback to his claim to belief. Harris ditto. He asks a re-election to the lower House of Congress without seeming to remember at all that he is involved in this dishonorable fraud! The Illinois State Register, edited by Lanphier, then, as now, the central organ of both Harris and Douglas, continues to din the public ear with this assertion, without seeming to suspect that these assertions are at all lacking in title to belief.

After all, the question still recurs upon us, How did that fraud originally get into the State Register? Lanphier then, as now, was the editor of that paper. Lanphier knows. Lanphier cannot be ignorant of how and by whom it was originally concocted. Can he be induced to tell, or, if he has told, can Judge Douglas be induced to tell how it originally was concocted? It may be true that Lanphier insists that the two men for whose benefit it was originally devised shall at least bear their share of it! How that is, I do not know, and while it remains unexplained I hope to be pardoned if I insist that the mere fact of Judge Douglas making charges against Trumbull and myself is not quite sufficient evidence to establish them!

While we were at Freeport, in one of these joint discussions, I answered certain interrogatories which Judge Douglas had propounded to me, and then in turn propounded some to him, which he in a sort of way answered. The third one of these interrogatories I have with me, and wish now to make some comments upon it. It was in these words: "If the Supreme Court of States cannot exclude slavery from their limits, are you in favor of acquiescing in, adhering to, and following such decision as a rule of political action?"

To this interrogatory Judge Douglas made no answer in any just sense of the word. He contented himself with sneering at the thought that it was possible for the Supreme Court ever to make such a decision. He sneered at me for propounding the interrogatory. I had not propounded it without some reflection, and I wish now to address to this audience some remarks upon it.

In the second clause of the sixth article, I believe it is, of the Constitution of the United States, we find the following language:

"This Constitution and the laws of the United States which shall be made in pursuance thereof, and all treaties made, or which shall be made, under the authority of the United States, shall be the supreme law of the land; and the judges in every State shall be bound thereby, anything in the Constitution or laws of any State to the contrary notwithstanding."

The essence of the Dred Scott case is compressed into the sentence which I will now read:

"Now, as we have already said in an earlier part of this opinion, upon a different point, the right of property in a slave is distinctly and expressly affirmed in the Constitution."

I repeat it, "The right of property in a slave is distinctly and expressly affirmed in the Constitution"! What is it to be "affirmed" in the Constitution? Made firm in the Constitution, so made that it cannot be separated from the Constitution without breaking the Constitution; durable as the Constitution, and part of the Constitution. Now, remembering the provision of the Constitution which I have read—affirming that that instrument is the supreme law of the land; that the judges of every State shall be bound by it, any law or constitution of any State to the contrary notwithstanding; that the right of property in a slave is affirmed in that Constitution, is made, formed into, and cannot be separated from it without breaking it; durable as the instrument; part of the instrument;—what follows as a short and even syllogistic argument from it? I think it follows, and I submit to the consideration of men capable of arguing whether, as I state it, in syllogistic form, the argument has any fault in it:

Nothing in the Constitution or laws of any State can destroy a right distinctly and expressly affirmed in the Constitution of the United States.

The right of property in a slave is distinctly and expressly affirmed in the Constitution of the United States.

Therefore, nothing in the Constitution or laws of any State can destroy the right of property in a slave.

I believe that no fault can be pointed out in that argument; assuming the truth of the premises, the conclusion, so far as I have capacity at all to understand it, follows inevitably. There is a fault in it as I think, but the fault is not in the reasoning; but the falsehood in fact is a fault of the premises. I believe that the right of property in a slave is not distinctly and expressly affirmed in the Constitution, and Judge Douglas thinks it is. I believe that the Supreme Court and the advocates of that decision may search in vain for the place in the Constitution where the right of property in a slave is distinctly and expressly affirmed I say, therefore, that I think one of the premises is not true in fact. But it is true with Judge Douglas. It is true with the Supreme Court who pronounced it. They are estopped from denying it, and being estopped from denying it, the conclusion follows that, the Constitution of the United States being the supreme law, no constitution or law can interfere with it. It being affirmed in the decision that the right of property in a slave is distinctly and expressly affirmed in the Constitution, the conclusion inevitably follows that no State law or constitution can

destroy that right. I then say to Judge Douglas and to all others that I think it will take a better answer than a sneer to show that those who have said that the right of property in a slave is distinctly and expressly affirmed in the Constitution, are not prepared to show that no constitution or law can destroy that right. I say I believe it will take a far better argument than a mere sneer to show to the minds of intelligent men that whoever has so said is not prepared, whenever public sentiment is so far advanced as to justify it, to say the other. This is but an opinion, and the opinion of one very humble man; but it is my opinion that the Dred Scott decision, as it is, never would have been made in its present form if the party that made it had not been sustained previously by the elections. My own opinion is, that the new Dred Scott decision, deciding against the right of the people of the States to exclude slavery, will never be made if that party is not sustained by the elections. I believe, further, that it is just as sure to be made as to-morrow is to come, if that party shall be sustained. I have said, upon a former occasion, and I repeat it now, that the course of argument that Judge Douglas makes use of upon this subject (I charge not his motives in this), is preparing the public mind for that new Dred Scott decision. I have asked him again to point out to me the reasons for his first adherence to the Dred Scott decision as it is. I have turned his attention to the fact that General Jackson differed with him in regard to the political obligation of a Supreme Court decision. I have asked his attention to the fact that Jefferson differed with him in regard to the political obligation of a Supreme Court decision. Jefferson said that "Judges are as honest as other men, and not more so." And he said, substantially, that whenever a free people should give up in absolute submission to any department of government, retaining for themselves no appeal from it, their liberties were gone. I have asked his attention to the fact that the Cincinnati platform, upon which he says he stands, disregards a time-honored decision of the Supreme Court, in denying the power of Congress to establish a National Bank. I have asked his attention to the fact that he himself was one of the most active instruments at one time in breaking down the Supreme Court of the State of Illinois because it had made a decision distasteful to him,—a struggle ending in the remarkable circumstance of his sitting down as one of the new Judges who were to overlaugh that decision; getting his title of Judge in that very way.

So far in this controversy I can get no answer at all from Judge Douglas upon these subjects. Not one can I get from him, except that he swells himself up and says, "All of us who stand by the decision of the Supreme Court are the friends of the Constitution; all you fellows that dare question it in any way are the enemies of the Constitution." Now, in this very devoted adherence to this decision, in opposition to all the great political leaders whom he has recognized as leaders, in opposition to his former self and history, there is something very marked. And the manner in which he adheres to it,—not as being right upon the merits, as he conceives (because he did not discuss that at all), but as being absolutely obligatory upon every one simply because of the source from whence it comes, as that which no man can gainsay, whatever it may be,—this is another marked feature of his adherence to that decision. It marks it in this respect, that it commits him to the next decision, whenever it comes, as being as obligatory as this one, since he does not investigate it, and won't inquire whether this opinion is right or wrong. So he takes the next one without inquiring whether it is right or wrong. He teaches men this doctrine, and in so doing prepares the public mind to take the next decision when it comes, without any inquiry. In this I think I argue fairly (without questioning motives at all) that Judge Douglas is most ingeniously and powerfully preparing the public mind to take that decision when it comes; and not only so, but he is doing it in various other ways. In these general maxims about liberty, in his assertions that he "don't care whether slavery is voted up or voted down,"; that "whoever wants slavery has a right to have it"; that "upon principles of equality it should be allowed to go everywhere"; that "there is no inconsistency between free and slave institutions"—in this he is also preparing (whether purposely or not) the way for making the institution of slavery national! I repeat again, for I wish no misunderstanding, that I do not charge that he means it so; but I call upon your minds to inquire, if you were going to get the best instrument you could, and then set it to work in the most ingenious way, to prepare the public mind for this movement, operating in the free States, where there is now an abhorrence of the institution of slavery, could you find an instrument so capable of doing it as Judge Douglas, or one employed in so apt a way to do it?

I have said once before, and I will repeat it now, that Mr. Clay, when he was once answering an objection to the Colonization Society, that it had a tendency to the ultimate emancipation of the slaves, said that:

"Those who would repress all tendencies to liberty and ultimate emancipation must do more than put down the benevolent efforts of the Colonization Society: they must go back to the era of our liberty and independence, and muzzle the cannon that thunders its annual joyous return; they must blow out the moral lights around us; they must penetrate the human soul, and eradicate the light of reason and the love of liberty!"

And I do think—I repeat, though I said it on a former occasion—that Judge Douglas and whoever, like him, teaches that the negro has no share, humble though it may be, in the Declaration of Independence, is going back to the era of our liberty and independence, and, so far as in him lies, muzzling the cannon that thunders its annual joyous return; that he is blowing out the moral lights around us, when he contends that whoever wants slaves has a right to hold them; that he is penetrating, so far as lies in his power, the human soul, and eradicating the light of reason and the love of liberty, when he is in every possible way preparing the public mind, by his vast influence, for making the institution of slavery perpetual and national.

There is, my friends, only one other point to which I will call your attention for the remaining time that I have left me, and perhaps I shall not occupy the entire time that I have, as that one point may not take me clear through it.

Among the interrogatories that Judge Douglas propounded to me at Freeport, there was one in about this language:

"Are you opposed to the acquisition of any further territory to the United States, unless slavery shall first be prohibited therein?"

I answered, as I thought, in this way: that I am not generally opposed to the acquisition of additional territory, and that I would support a proposition for the acquisition of additional territory according as my supporting it was or was not calculated to aggravate this slavery question amongst us. I then proposed to Judge Douglas another interrogatory, which was correlative to that: "Are you in favor of acquiring additional territory, in disregard of how it may affect us upon the slavery question?" Judge Douglas answered,—that is, in his own way he answered it. I believe that, although he took a good many words to answer it, it was a little more fully answered than any other. The substance of his answer was that this country would continue to expand; that it would need additional territory; that it was as absurd to

suppose that we could continue upon our present territory, enlarging in population as we are, as it would be to hoop a boy twelve years of age, and expect him to grow to man's size without bursting the hoops. I believe it was something like that. Consequently, he was in favor of the acquisition of further territory as fast as we might need it, in disregard of how it might affect the slavery question. I do not say this as giving his exact language, but he said so substantially; and he would leave the question of slavery, where the territory was acquired, to be settled by the people of the acquired territory. ["That's the doctrine."] May be it is; let us consider that for a while. This will probably, in the run of things, become one of the concrete manifestations of this slavery question. If Judge Douglas's policy upon this question succeeds, and gets fairly settled down, until all opposition is crushed out, the next thing will be a grab for the territory of poor Mexico, an invasion of the rich lands of South America, then the adjoining islands will follow, each one of which promises additional slave-fields. And this question is to be left to the people of those countries for settlement. When we get Mexico, I don't know whether the Judge will be in favor of the Mexican people that we get with it settling that question for themselves and all others; because we know the Judge has a great horror for mongrels, and I understand that the people of Mexico are most decidedly a race of mongrels. I understand that there is not more than one person there out of eight who is pure white, and I suppose from the Judge's previous declaration that when we get Mexico, or any considerable portion of it, that he will be in favor of these mongrels settling the question, which would bring him somewhat into collision with his horror of an inferior race.

It is to be remembered, though, that this power of acquiring additional territory is a power confided to the President and the Senate of the United States. It is a power not under the control of the representatives of the people any further than they, the President and the Senate, can be considered the representatives of the people. Let me illustrate that by a case we have in our history. When we acquired the territory from Mexico in the Mexican War, the House of Representatives, composed of the immediate representatives of the people, all the time insisted that the territory thus to be acquired should be brought in upon condition that slavery should be forever prohibited therein, upon the terms and in the language that slavery had been prohibited from coming into this country. That was insisted upon constantly and never failed to call forth an assurance that any territory thus

acquired should have that prohibition in it, so far as the House of Representatives was concerned. But at last the President and Senate acquired the territory without asking the House of Representatives anything about it, and took it without that prohibition. They have the power of acquiring territory without the immediate representatives of the people being called upon to say anything about it, and thus furnishing a very apt and powerful means of bringing new territory into the Union, and, when it is once brought into the country, involving us anew in this slavery agitation. It is therefore, as I think, a very important question for due consideration of the American people, whether the policy of bringing in additional territory, without considering at all how it will operate upon the safety of the Union in reference to this one great disturbing element in our national politics, shall be adopted as the policy of the country. You will bear in mind that it is to be acquired, according to the Judge's view, as fast as it is needed, and the indefinite part of this proposition is that we have only Judge Douglas and his class of men to decide how fast it is needed. We have no clear and certain way of determining or demonstrating how fast territory is needed by the necessities of the country. Whoever wants to go out filibustering, then, thinks that more territory is needed. Whoever wants wider slave-fields feels sure that some additional territory is needed as slave territory. Then it is as easy to show the necessity of additional slave-territory as it is to assert anything that is incapable of absolute demonstration. Whatever motive a man or a set of men may have for making annexation of property or territory, it is very easy to assert, but much less easy to disprove, that it is necessary for the wants of the country.

And now it only remains for me to say that I think it is a very grave question for the people of this Union to consider, whether, in view of the fact that this slavery question has been the only one that has ever endangered our Republican institutions, the only one that has ever threatened or menaced a dissolution of the Union, that has ever disturbed us in such a way as to make us fear for the perpetuity of our liberty,—in view of these facts, I think it is an exceedingly interesting and important question for this people to consider whether we shall engage in the policy of acquiring additional territory, discarding altogether from our consideration, while obtaining new territory, the question how it may affect us in regard to this, the only endangering element to our liberties and national greatness. The Judge's view has been expressed. I, in my answer to his question, have

expressed mine. I think it will become an important and practical question. Our views are before the public. I am willing and anxious that they should consider them fully; that they should turn it about and consider the importance of the question, and arrive at a just conclusion as to whether it is or is not wise in the people of this Union, in the acquisition of new territory, to consider whether it will add to the disturbance that is existing amongst us—whether it will add to the one only danger that has ever threatened the perpetuity of the Union or our own liberties. I think it is extremely important that they shall decide, and rightly decide, that question before entering upon that policy.

And now, my friends, having said the little I wish to say upon this head, whether I have occupied the whole of the remnant of my time or not, I believe I could not enter upon any new topic so as to treat it fully, without transcending my time, which I would not for a moment think of doing. I give way to Judge Douglas.

SIXTH JOINT DEBATE, AT QUINCY, OCTOBER 13, 1858.

LADIES AND GENTLEMEN: I have had no immediate conference with Judge Douglas, but I will venture to say that he and I will perfectly agree that your entire silence, both when I speak and when he speaks, will be most agreeable to us.

In the month of May, 1856, the elements in the State of Illinois which have since been consolidated into the Republican party assembled together in a State Convention at Bloomington. They adopted at that time what, in political language, is called a platform. In June of the same year the elements of the Republican party in the nation assembled together in a National Convention at Philadelphia. They adopted what is called the National Platform. In June, 1858,—the present year,—the Republicans of Illinois reassembled at Springfield, in State Convention, and adopted again their platform, as I suppose not differing in any essential particular from either of the former ones, but perhaps adding something in relation to the new developments of political progress in the country.

The Convention that assembled in June last did me the honor, if it be one, and I esteem it such, to nominate me as their candidate for the United States Senate. I have supposed that, in entering upon this canvass, I stood generally upon these platforms. We are now met together on the 13th of October of the same year, only four months from the adoption of the last platform, and I am unaware that in this canvass, from the beginning until to-day, any one of our adversaries has taken hold of our platforms, or laid his finger upon anything that he calls wrong in them.

In the very first one of these joint discussions between Senator Douglas and myself, Senator Douglas, without alluding at all to these platforms, or any one of them, of which I have spoken, attempted to hold me responsible for a set of resolutions passed long before the meeting of either one of these conventions of which I have spoken. And as a ground for holding me responsible for these resolutions, he assumed that they had been passed at a State Convention of the Republican party, and that I took part in that

Convention. It was discovered afterward that this was erroneous, that the resolutions which he endeavored to hold me responsible for had not been passed by any State Convention anywhere, had not been passed at Springfield, where he supposed they had, or assumed that they had, and that they had been passed in no convention in which I had taken part. The Judge, nevertheless, was not willing to give up the point that he was endeavoring to make upon me, and he therefore thought to still hold me to the point that he was endeavoring to make, by showing that the resolutions that he read had been passed at a local convention in the northern part of the State, although it was not a local convention that embraced my residence at all, nor one that reached, as I suppose, nearer than one hundred and fifty or two hundred miles of where I was when it met, nor one in which I took any part at all. He also introduced other resolutions, passed at other meetings, and by combining the whole, although they were all antecedent to the two State Conventions and the one National Convention I have mentioned, still he insisted, and now insists, as I understand, that I am in some way responsible for them.

At Jonesboro, on our third meeting, I insisted to the Judge that I was in no way rightfully held responsible for the proceedings of this local meeting or convention, in which I had taken no part, and in which I was in no way embraced; but I insisted to him that if he thought I was responsible for every man or every set of men everywhere, who happen to be my friends, the rule ought to work both ways, and he ought to be responsible for the acts and resolutions of all men or sets of men who were or are now his supporters and friends, and gave him a pretty long string of resolutions, passed by men who are now his friends, and announcing doctrines for which he does not desire to be held responsible.

This still does not satisfy Judge Douglas. He still adheres to his proposition, that I am responsible for what some of my friends in different parts of the State have done, but that he is not responsible for what his have done. At least, so I understand him. But in addition to that, the Judge, at our meeting in Galesburgh, last week, undertakes to establish that I am guilty of a species of double dealing with the public; that I make speeches of a certain sort in the north, among the Abolitionists, which I would not make in the south, and that I make speeches of a certain sort in the south which I would not make in the north. I apprehend, in the course I have marked out

for myself, that I shall not have to dwell at very great length upon this subject.

As this was done in the Judge's opening speech at Galesburgh, I had an opportunity, as I had the middle speech then, of saying something in answer to it. He brought forward a quotation or two from a speech of mine delivered at Chicago, and then, to contrast with it, he brought forward an extract from a speech of mine at Charleston, in which he insisted that I was greatly inconsistent, and insisted that his conclusion followed, that I was playing a double part, and speaking in one region one way, and in another region another way. I have not time now to dwell on this as long as I would like, and wish only now to requote that portion of my speech at Charleston which the Judge quoted, and then make some comments upon it. This he quotes from me as being delivered at Charleston, and I believe correctly:

"I will say, then, that I am not, nor ever have been, in favor of bringing about in any way the social and political equality of the white and black races; that I am not, nor ever have been, in favor of making voters or jurors of negroes, nor of qualifying them to hold office, nor to intermarry with white people; and I will say, in addition to this, that there is a physical difference between the white and black races which will forever forbid the two races living together on terms of social and political equality. And inasmuch as they cannot so live while they do remain together, there must be the position of superior and inferior. I am as much as any other man in favor of having the superior position assigned to the white race."

This, I believe, is the entire quotation from Charleston speech, as Judge Douglas made it his comments are as follows:

"Yes, here you find men who hurrah for Lincoln, and say he is right when he discards all distinction between races, or when he declares that he discards the doctrine that there is such a thing as a superior and inferior race; and Abolitionists are required and expected to vote for Mr. Lincoln because he goes for the equality of races, holding that in the Declaration of Independence the white man and negro were declared equal, and endowed by divine law with equality. And down South, with the old-line Whigs, with the Kentuckians, the Virginians and the Tennesseans, he tells you that there is a physical difference between the races, making the one superior, the other inferior, and he is in favor of maintaining the superiority of the white race over the negro."

Those are the Judges comments. Now, I wish to show you that a month, or only lacking three days of a month, before I made the speech at Charleston, which the Judge quotes from, he had himself heard me say substantially the same thing. It was in our first meeting, at Ottawa—and I will say a word about where it was, and the atmosphere it was in, after a while—but at our first meeting, at Ottawa, I read an extract from an old speech of mine, made nearly four years ago, not merely to show my sentiments, but to show that my sentiments were long entertained and openly expressed; in which extract I expressly declared that my own feelings would not admit a social and political equality between the white and black races, and that even if my own feelings would admit of it, I still knew that the public sentiment of the country would not, and that such a thing was an utter impossibility, or substantially that. That extract from my old speech the reporters by some sort of accident passed over, and it was not reported. I lay no blame upon anybody. I suppose they thought that I would hand it over to them, and dropped reporting while I was giving it, but afterward went away without getting it from me. At the end of that quotation from my old speech, which I read at Ottawa, I made the comments which were reported at that time, and which I will now read, and ask you to notice how very nearly they are the same as Judge Douglas says were delivered by me down in Egypt. After reading, I added these words:

"Now, gentlemen, I don't want to read at any great length; but this is the true complexion of all I have ever said in regard to the institution of slavery or the black race, and this is the whole of it: anything that argues me into his idea of perfect social and political equality with the negro, is but a specious and fantastical arrangement of words by which a man can prove a horse-chestnut to be a chestnut horse. I will say here, while upon this subject, that I have no purpose, directly or indirectly, to interfere with the institution in the States where it exists. I believe I have no right to do so. I have no inclination to do so. I have no purpose to introduce political and social equality between the white and black races. There is a physical difference between the two which, in my judgment, will probably forever forbid their living together on the footing of perfect equality; and inasmuch as it becomes a necessity that there must be a difference, I, as well as Judge Douglas, am in favor of the race to which I belong having the superior position. I have never said anything to the contrary, but I hold that, notwithstanding all this, there is no reason in the world why the negro is not

entitled to all the rights enumerated in the Declaration of Independence,—the right of life, liberty, and the pursuit of happiness. I hold that he is as much entitled to these as the white man. I agree with Judge Douglas that he is not my equal in many respects, certainly not in color, perhaps not in intellectual and moral endowments; but in the right to eat the bread, without the leave of anybody else, which his own hand earns, he is my equal and the equal of Judge Douglas, and the equal of every other man."

I have chiefly introduced this for the purpose of meeting the Judge's charge that the quotation he took from my Charleston speech was what I would say down South among the Kentuckians, the Virginians, etc., but would not say in the regions in which was supposed to be more of the Abolition element. I now make this comment: That speech from which I have now read the quotation, and which is there given correctly—perhaps too much so for good taste—was made away up North in the Abolition District of this State par excellence, in the Lovejoy District, in the personal presence of Lovejoy, for he was on the stand with us when I made it. It had been made and put in print in that region only three days less than a month before the speech made at Charleston, the like of which Judge Douglas thinks I would not make where there was any Abolition element. I only refer to this matter to say that I am altogether unconscious of having attempted any double-dealing anywhere; that upon one occasion I may say one thing, and leave other things unsaid, and vice versa, but that I have said anything on one occasion that is inconsistent with what I have said elsewhere, I deny, at least I deny it so far as the intention is concerned. I find that I have devoted to this topic a larger portion of my time than I had intended. I wished to show, but I will pass it upon this occasion, that in the sentiment I have occasionally advanced upon the Declaration of Independence I am entirely borne out by the sentiments advanced by our old Whig leader, Henry Clay, and I have the book here to show it from but because I have already occupied more time than I intended to do on that topic, I pass over it.

At Galesburgh, I tried to show that by the Dred Scott decision, pushed to its legitimate consequences, slavery would be established in all the States as well as in the Territories. I did this because, upon a former occasion, I had asked Judge Douglas whether, if the Supreme Court should make a decision declaring that the States had not the power to exclude slavery from their limits, he would adopt and follow that decision as a rule of political action;

and because he had not directly answered that question, but had merely contented himself with sneering at it, I again introduced it, and tried to show that the conclusion that I stated followed inevitably and logically from the proposition already decided by the court. Judge Douglas had the privilege of replying to me at Galesburgh, and again he gave me no direct answer as to whether he would or would not sustain such a decision if made. I give him his third chance to say yes or no. He is not obliged to do either, probably he will not do either; but I give him the third chance. I tried to show then that this result, this conclusion, inevitably followed from the point already decided by the court. The Judge, in his reply, again sneers at the thought of the court making any such decision, and in the course of his remarks upon this subject uses the language which I will now read. Speaking of me, the Judge says:

"He goes on and insists that the Dred Scott decision would carry slavery into the free States, notwithstanding the decision itself says the contrary." And he adds:

"Mr. Lincoln knows that there is no member of the Supreme Court that holds that doctrine. He knows that every one of them in their opinions held the reverse."

I especially introduce this subject again for the purpose of saying that I have the Dred Scott decision here, and I will thank Judge Douglas to lay his finger upon the place in the entire opinions of the court where any one of them "says the contrary." It is very hard to affirm a negative with entire confidence. I say, however, that I have examined that decision with a good deal of care, as a lawyer examines a decision and, so far as I have been able to do so, the court has nowhere in its opinions said that the States have the power to exclude slavery, nor have they used other language substantially that, I also say, so far as I can find, not one of the concurring judges has said that the States can exclude slavery, nor said anything that was substantially that. The nearest approach that any one of them has made to it, so far as I can find, was by Judge Nelson, and the approach he made to it was exactly, in substance, the Nebraska Bill,—that the States had the exclusive power over the question of slavery, so far as they are not limited by the Constitution of the United States. I asked the question, therefore, if the non-concurring judges, McLean or Curtis, had asked to get an express declaration that the States could absolutely exclude slavery from their

limits, what reason have we to believe that it would not have been voted down by the majority of the judges, just as Chase's amendment was voted down by Judge Douglas and his compeers when it was offered to the Nebraska Bill.

Also, at Galesburgh, I said something in regard to those Springfield resolutions that Judge Douglas had attempted to use upon me at Ottawa, and commented at some length upon the fact that they were, as presented, not genuine. Judge Douglas in his reply to me seemed to be somewhat exasperated. He said he would never have believed that Abraham Lincoln, as he kindly called me, would have attempted such a thing as I had attempted upon that occasion; and among other expressions which he used toward me, was that I dared to say forgery, that I had dared to say forgery [turning to Judge Douglas]. Yes, Judge, I did dare to say forgery. But in this political canvass the Judge ought to remember that I was not the first who dared to say forgery. At Jacksonville, Judge Douglas made a speech in answer to something said by Judge Trumbull, and at the close of what he said upon that subject, he dared to say that Trumbull had forged his evidence. He said, too, that he should not concern himself with Trumbull any more, but thereafter he should hold Lincoln responsible for the slanders upon him. When I met him at Charleston after that, although I think that I should not have noticed the subject if he had not said he would hold me responsible for it, I spread out before him the statements of the evidence that Judge Trumbull had used, and I asked Judge Douglas, piece by piece, to put his finger upon one piece of all that evidence that he would say was a forgery! When I went through with each and every piece, Judge Douglas did not dare then to say that any piece of it was a forgery. So it seems that there are some things that Judge Douglas dares to do, and some that he dares not to do.

[A voice: It is the same thing with you.]

Yes, sir, it is the same thing with me. I do dare to say forgery when it is true, and don't dare to say forgery when it is false. Now I will say here to this audience and to Judge Douglas I have not dared to say he committed a forgery, and I never shall until I know it; but I did dare to say—just to suggest to the Judge—that a forgery had been committed, which by his own showing had been traced to him and two of his friends. I dared to suggest to him that he had expressly promised in one of his public speeches to

investigate that matter, and I dared to suggest to him that there was an implied promise that when he investigated it he would make known the result. I dared to suggest to the Judge that he could not expect to be quite clear of suspicion of that fraud, for since the time that promise was made he had been with those friends, and had not kept his promise in regard to the investigation and the report upon it. I am not a very daring man, but I dared that much, Judge, and I am not much scared about it yet. When the Judge says he would n't have believed of Abraham Lincoln that he would have made such an attempt as that he reminds me of the fact that he entered upon this canvass with the purpose to treat me courteously; that touched me somewhat. It sets me to thinking. I was aware, when it was first agreed that Judge Douglas and I were to have these seven joint discussions, that they were the successive acts of a drama, perhaps I should say, to be enacted, not merely in the face of audiences like this, but in the face of the nation, and to some extent, by my relation to him, and not from anything in myself, in the face of the world; and I am anxious that they should be conducted with dignity and in the good temper which would be befitting the vast audiences before which it was conducted. But when Judge Douglas got home from Washington and made his first speech in Chicago, the evening afterward I made some sort of a reply to it. His second speech was made at Bloomington, in which he commented upon my speech at Chicago and said that I had used language ingeniously contrived to conceal my intentions, or words to that effect. Now, I understand that this is an imputation upon my veracity and my candor. I do not know what the Judge understood by it, but in our first discussion, at Ottawa, he led off by charging a bargain, somewhat corrupt in its character, upon Trumbull and myself,—that we had entered into a bargain, one of the terms of which was that Trumbull was to Abolitionize the old Democratic party, and I (Lincoln) was to Abolitionize the old Whig party; I pretending to be as good an old-line Whig as ever. Judge Douglas may not understand that he implicated my truthfulness and my honor when he said I was doing one thing and pretending another; and I misunderstood him if he thought he was treating me in a dignified way, as a man of honor and truth, as he now claims he was disposed to treat me. Even after that time, at Galesburgh, when he brings forward an extract from a speech made at Chicago and an extract from a speech made at Charleston, to prove that I was trying to play a double part, that I was trying to cheat the public, and get votes upon one set of principles at one place, and upon

another set of principles at another place,—I do not understand but what he impeaches my honor, my veracity, and my candor; and because he does this, I do not understand that I am bound, if I see a truthful ground for it, to keep my hands off of him. As soon as I learned that Judge Douglas was disposed to treat me in this way, I signified in one of my speeches that I should be driven to draw upon whatever of humble resources I might have,—to adopt a new course with him. I was not entirely sure that I should be able to hold my own with him, but I at least had the purpose made to do as well as I could upon him; and now I say that I will not be the first to cry "Hold." I think it originated with the Judge, and when he quits, I probably will. But I shall not ask any favors at all. He asks me, or he asks the audience, if I wish to push this matter to the point of personal difficulty. I tell him, no. He did not make a mistake, in one of his early speeches, when he called me an "amiable" man, though perhaps he did when he called me an "intelligent" man. It really hurts me very much to suppose that I have wronged anybody on earth. I again tell him, no! I very much prefer, when this canvass shall be over, however it may result, that we at least part without any bitter recollections of personal difficulties.

The Judge, in his concluding speech at Galesburgh, says that I was pushing this matter to a personal difficulty, to avoid the responsibility for the enormity of my principles. I say to the Judge and this audience, now, that I will again state our principles, as well as I hastily can, in all their enormity, and if the Judge hereafter chooses to confine himself to a war upon these principles, he will probably not find me departing from the same course.

We have in this nation this element of domestic slavery. It is a matter of absolute certainty that it is a disturbing element. It is the opinion of all the great men who have expressed an opinion upon it, that it is a dangerous element. We keep up a controversy in regard to it. That controversy necessarily springs from difference of opinion; and if we can learn exactly—can reduce to the lowest elements—what that difference of opinion is, we perhaps shall be better prepared for discussing the different systems of policy that we would propose in regard to that disturbing element. I suggest that the difference of opinion, reduced to its lowest of terms, is no other than the difference between the men who think slavery a wrong and those who do not think it wrong. The Republican party think it wrong; we think it is a moral, a social, and a political wrong. We think it as a wrong not

confining itself merely to the persons or the States where it exists, but that it is a wrong in its tendency, to say the least, that extends itself to the existence of the whole nation. Because we think it wrong, we propose a course of policy that shall deal with it as a wrong. We deal with it as with any other wrong, in so far as we can prevent its growing any larger, and so deal with it that in the run of time there may be some promise of an end to it. We have a due regard to the actual presence of it amongst us, and the difficulties of getting rid of it in any satisfactory way, and all the constitutional obligations thrown about it. I suppose that in reference both to its actual existence in the nation, and to our constitutional obligations, we have no right at all to disturb it in the States where it exists, and we profess that we have no more inclination to disturb it than we have the right to do it. We go further than that: we don't propose to disturb it where, in one instance, we think the Constitution would permit us. We think the Constitution would permit us to disturb it in the District of Columbia. Still, we do not propose to do that, unless it should be in terms which I don't suppose the nation is very likely soon to agree to,—the terms of making the emancipation gradual, and compensating the unwilling owners. Where we suppose we have the constitutional right, we restrain ourselves in reference to the actual existence of the institution and the difficulties thrown about it. We also oppose it as an evil so far as it seeks to spread itself. We insist on the policy that shall restrict it to its present limits. We don't suppose that in doing this we violate anything due to the actual presence of the institution, or anything due to the constitutional guaranties thrown around it.

We oppose the Dred Scott decision in a certain way, upon which I ought perhaps to address you a few words. We do not propose that when Dred Scott has been decided to be a slave by the court, we, as a mob, will decide him to be free. We do not propose that, when any other one, or one thousand, shall be decided by that court to be slaves, we will in any violent way disturb the rights of property thus settled; but we nevertheless do oppose that decision as a political rule which shall be binding on the voter to vote for nobody who thinks it wrong, which shall be binding on the members of Congress or the President to favor no measure that does not actually concur with the principles of that decision. We do not propose to be bound by it as a political rule in that way, because we think it lays the foundation, not merely of enlarging and spreading out what we consider an evil, but it lays the foundation for spreading that evil into the States

themselves. We propose so resisting it as to have it reversed if we can, and a new judicial rule established upon this subject.

I will add this: that if there be any man who does not believe that slavery is wrong in the three aspects which I have mentioned, or in any one of them, that man is misplaced, and ought to leave us; while on the other hand, if there be any man in the Republican party who is impatient over the necessity springing from its actual presence, and is impatient of the constitutional guaranties thrown around it, and would act in disregard of these, he too is misplaced, standing with us. He will find his place somewhere else; for we have a due regard, so far as we are capable of understanding them, for all these things. This, gentlemen, as well as I can give it, is a plain statement of our principles in all their enormity. I will say now that there is a sentiment in the country contrary to me,—a sentiment which holds that slavery is not wrong, and therefore it goes for the policy that does not propose dealing with it as a wrong. That policy is the Democratic policy, and that sentiment is the Democratic sentiment. If there be a doubt in the mind of any one of this vast audience that this is really the central idea of the Democratic party in relation to this subject, I ask him to bear with me while I state a few things tending, as I think, to prove that proposition. In the first place, the leading man—I think I may do my friend Judge Douglas the honor of calling him such advocating the present Democratic policy never himself says it is wrong. He has the high distinction, so far as I know, of never having said slavery is either right or wrong. Almost everybody else says one or the other, but the Judge never does. If there be a man in the Democratic party who thinks it is wrong, and yet clings to that party, I suggest to him, in the first place, that his leader don't talk as he does, for he never says that it is wrong. In the second place, I suggest to him that if he will examine the policy proposed to be carried forward, he will find that he carefully excludes the idea that there is anything wrong in it. If you will examine the arguments that are made on it, you will find that every one carefully excludes the idea that there is anything wrong in slavery. Perhaps that Democrat who says he is as much opposed to slavery as I am will tell me that I am wrong about this. I wish him to examine his own course in regard to this matter a moment, and then see if his opinion will not be changed a little. You say it is wrong; but don't you constantly object to anybody else saying so? Do you not constantly argue that this is not the right place to oppose it? You say it must not be

opposed in the free States, because slavery is not here; it must not be opposed in the slave States, because it is there; it must not be opposed in politics, because that will make a fuss; it must not be opposed in the pulpit, because it is not religion. Then where is the place to oppose it? There is no suitable place to oppose it. There is no place in the country to oppose this evil overspreading the continent, which you say yourself is coming. Frank Blair and Gratz Brown tried to get up a system of gradual emancipation in Missouri, had an election in August, and got beat, and you, Mr. Democrat, threw up your hat, and hallooed "Hurrah for Democracy!" So I say, again, that in regard to the arguments that are made, when Judge Douglas Says he "don't care whether slavery is voted up or voted down," whether he means that as an individual expression of sentiment, or only as a sort of statement of his views on national policy, it is alike true to say that he can thus argue logically if he don't see anything wrong in it; but he cannot say so logically if he admits that slavery is wrong. He cannot say that he would as soon see a wrong voted up as voted down. When Judge Douglas says that whoever or whatever community wants slaves, they have a right to have them, he is perfectly logical, if there is nothing wrong in the institution; but if you admit that it is wrong, he cannot logically say that anybody has a right to do wrong. When he says that slave property and horse and hog property are alike to be allowed to go into the Territories, upon the principles of equality, he is reasoning truly, if there is no difference between them as property; but if the one is property held rightfully, and the other is wrong, then there is no equality between the right and wrong; so that, turn it in anyway you can, in all the arguments sustaining the Democratic policy, and in that policy itself, there is a careful, studied exclusion of the idea that there is anything wrong in slavery. Let us understand this. I am not, just here, trying to prove that we are right, and they are wrong. I have been stating where we and they stand, and trying to show what is the real difference between us; and I now say that whenever we can get the question distinctly stated, can get all these men who believe that slavery is in some of these respects wrong to stand and act with us in treating it as a wrong,—then, and not till then, I think we will in some way come to an end of this slavery agitation.

Mr. LINCOLN'S REJOINDER.

MY FRIENDS:—Since Judge Douglas has said to you in his conclusion that he had not time in an hour and a half to answer all I had said in an hour, it follows of course that I will not be able to answer in half an hour all that he said in an hour and a half.

I wish to return to Judge Douglas my profound thanks for his public annunciation here to-day, to be put on record, that his system of policy in regard to the institution of slavery contemplates that it shall last forever. We are getting a little nearer the true issue of this controversy, and I am profoundly grateful for this one sentence. Judge Douglas asks you, Why cannot the institution of slavery, or rather, why cannot the nation, part slave and part free, continue as our fathers made it, forever? In the first place, I insist that our fathers did not make this nation half slave and half free, or part slave and part free. I insist that they found the institution of slavery existing here. They did not make it so but they left it so because they knew of no way to get rid of it at that time. When Judge Douglas undertakes to say that, as a matter of choice, the fathers of the government made this nation part slave and part free, he assumes what is historically a falsehood. More than that: when the fathers of the government cut off the source of slavery by the abolition of the slave-trade, and adopted a system of restricting it from the new Territories where it had not existed, I maintain that they placed it where they understood, and all sensible men understood, it was in the course of ultimate extinction; and when Judge Douglas asks me why it cannot continue as our fathers made it, I ask him why he and his friends could not let it remain as our fathers made it?

It is precisely all I ask of him in relation to the institution of slavery, that it shall be placed upon the basis that our fathers placed it upon. Mr. Brooks, of South Carolina, once said, and truly said, that when this government was established, no one expected the institution of slavery to last until this day, and that the men who formed this government were wiser and better than the men of these days; but the men of these days had experience which the fathers had not, and that experience had taught them the invention of the cotton-gin, and this had made the perpetuation of the institution of slavery a

necessity in this country. Judge Douglas could not let it stand upon the basis which our fathers placed it, but removed it, and put it upon the cotton-gin basis. It is a question, therefore, for him and his friends to answer, why they could not let it remain where the fathers of the government originally placed it. I hope nobody has understood me as trying to sustain the doctrine that we have a right to quarrel with Kentucky, or Virginia, or any of the slave States, about the institution of slavery,—thus giving the Judge an opportunity to be eloquent and valiant against us in fighting for their rights. I expressly declared in my opening speech that I had neither the inclination to exercise, nor the belief in the existence of, the right to interfere with the States of Kentucky or Virginia in doing as they pleased with slavery Or any other existing institution. Then what becomes of all his eloquence in behalf of the rights of States, which are assailed by no living man?

But I have to hurry on, for I have but a half hour. The Judge has informed me, or informed this audience, that the Washington Union is laboring for my election to the United States Senate. This is news to me,—not very ungrateful news either. [Turning to Mr. W. H. Carlin, who was on the stand]—I hope that Carlin will be elected to the State Senate, and will vote for me. [Mr. Carlin shook his head.] Carlin don't fall in, I perceive, and I suppose he will not do much for me; but I am glad of all the support I can get, anywhere, if I can get it without practicing any deception to obtain it. In respect to this large portion of Judge Douglas's speech in which he tries to show that in the controversy between himself and the Administration party he is in the right, I do not feel myself at all competent or inclined to answer him. I say to him, "Give it to them,—give it to them just all you can!" and, on the other hand, I say to Carlin, and Jake Davis, and to this man Wogley up here in Hancock, "Give it to Douglas, just pour it into him!"

Now, in regard to this matter of the Dred Scott decision, I wish to say a word or two. After all, the Judge will not say whether, if a decision is made holding that the people of the States cannot exclude slavery, he will support it or not. He obstinately refuses to say what he will do in that case. The judges of the Supreme Court as obstinately refused to say what they would do on this subject. Before this I reminded him that at Galesburgh he said the judges had expressly declared the contrary, and you remember that in my Opening speech I told him I had the book containing that decision here, and I would thank him to lay his finger on the place where any such thing was said. He has occupied his hour and a half, and he has not ventured to try to

sustain his assertion. He never will. But he is desirous of knowing how we are going to reverse that Dred Scott decision. Judge Douglas ought to know how. Did not he and his political friends find a way to reverse the decision of that same court in favor of the constitutionality of the National Bank? Didn't they find a way to do it so effectually that they have reversed it as completely as any decision ever was reversed, so far as its practical operation is concerned?

And let me ask you, did n't Judge Douglas find a way to reverse the decision of our Supreme Court when it decided that Carlin's father—old Governor Carlin had not the constitutional power to remove a Secretary of State? Did he not appeal to the "MOBS," as he calls them? Did he not make speeches in the lobby to show how villainous that decision was, and how it ought to be overthrown? Did he not succeed, too, in getting an act passed by the Legislature to have it overthrown? And did n't he himself sit down on that bench as one of the five added judges, who were to overslaugh the four old ones, getting his name of "judge" in that way, and no other? If there is a villainy in using disrespect or making opposition to Supreme Court decisions, I commend it to Judge Douglas's earnest consideration. I know of no man in the State of Illinois who ought to know so well about how much villainy it takes to oppose a decision of the Supreme Court as our honorable friend Stephen A. Douglas.

Judge Douglas also makes the declaration that I say the Democrats are bound by the Dred Scott decision, while the Republicans are not. In the sense in which he argues, I never said it; but I will tell you what I have said and what I do not hesitate to repeat to-day. I have said that as the Democrats believe that decision to be correct, and that the extension of slavery is affirmed in the National Constitution, they are bound to support it as such; and I will tell you here that General Jackson once said each man was bound to support the Constitution "as he understood it." Now, Judge Douglas understands the Constitution according to the Dred Scott decision, and he is bound to support it as he understands it. I understand it another way, and therefore I am bound to support it in the way in which I understand it. And as Judge Douglas believes that decision to be correct, I will remake that argument if I have time to do so. Let me talk to some gentleman down there among you who looks me in the face. We will say you are a member of the Territorial Legislature, and, like Judge Douglas, you believe that the right to take and hold slaves there is a constitutional right. The first thing you do is

to swear you will support the Constitution, and all rights guaranteed therein; that you will, whenever your neighbor needs your legislation to support his constitutional rights, not withhold that legislation. If you withhold that necessary legislation for the support of the Constitution and constitutional rights, do you not commit perjury? I ask every sensible man if that is not so? That is undoubtedly just so, say what you please. Now, that is precisely what Judge Douglas says, that this is a constitutional right. Does the Judge mean to say that the Territorial Legislature in legislating may, by withholding necessary laws, or by passing unfriendly laws, nullify that constitutional right? Does he mean to say that? Does he mean to ignore the proposition so long and well established in law, that what you cannot do directly, you cannot do indirectly? Does he mean that? The truth about the matter is this: Judge Douglas has sung paeans to his "Popular Sovereignty" doctrine until his Supreme Court, co-operating with him, has squatted his Squatter Sovereignty out. But he will keep up this species of humbuggery about Squatter Sovereignty. He has at last invented this sort of do-nothing sovereignty,—that the people may exclude slavery by a sort of "sovereignty" that is exercised by doing nothing at all. Is not that running his Popular Sovereignty down awfully? Has it not got down as thin as the homeopathic soup that was made by boiling the shadow of a pigeon that had starved to death? But at last, when it is brought to the test of close reasoning, there is not even that thin decoction of it left. It is a presumption impossible in the domain of thought. It is precisely no other than the putting of that most unphilosophical proposition, that two bodies can occupy the same space at the same time. The Dred Scott decision covers the whole ground, and while it occupies it, there is no room even for the shadow of a starved pigeon to occupy the same ground.

Judge Douglas, in reply to what I have said about having upon a previous occasion made the speech at Ottawa as the one he took an extract from at Charleston, says it only shows that I practiced the deception twice. Now, my friends, are any of you obtuse enough to swallow that? Judge Douglas had said I had made a speech at Charleston that I would not make up north, and I turned around and answered him by showing I had made that same speech up north,—had made it at Ottawa; made it in his hearing; made it in the Abolition District,—in Lovejoy's District,—in the personal presence of Lovejoy himself,—in the same atmosphere exactly in which I had made my Chicago speech, of which he complains so much.

Now, in relation to my not having said anything about the quotation from the Chicago speech: he thinks that is a terrible subject for me to handle. Why, gentlemen, I can show you that the substance of the Chicago speech I delivered two years ago in "Egypt," as he calls it. It was down at Springfield. That speech is here in this book, and I could turn to it and read it to you but for the lack of time. I have not now the time to read it. ["Read it, read it."] No, gentlemen, I am obliged to use discretion in disposing most advantageously of my brief time. The Judge has taken great exception to my adopting the heretical statement in the Declaration of Independence, that "all men are created equal," and he has a great deal to say about negro equality. I want to say that in sometimes alluding to the Declaration of Independence, I have only uttered the sentiments that Henry Clay used to hold. Allow me to occupy your time a moment with what he said. Mr. Clay was at one time called upon in Indiana, and in a way that I suppose was very insulting, to liberate his slaves; and he made a written reply to that application, and one portion of it is in these words:

"What is the foundation of this appeal to me in Indiana to liberate the slaves under my care in Kentucky? It is a general declaration in the act announcing to the world the independence of the thirteen American colonies, that men are created equal. Now, as an abstract principle, there is no doubt of the truth of that declaration, and it is desirable in the original construction of society, and in organized societies, to keep it in view as a great fundamental principle."

When I sometimes, in relation to the organization of new societies in new countries, where the soil is clean and clear, insisted that we should keep that principle in view, Judge Douglas will have it that I want a negro wife. He never can be brought to understand that there is any middle ground on this subject. I have lived until my fiftieth year, and have never had a negro woman either for a slave or a wife, and I think I can live fifty centuries, for that matter, without having had one for either. I maintain that you may take Judge Douglas's quotations from my Chicago speech, and from my Charleston speech, and the Galesburgh speech,—in his speech of to-day,—and compare them over, and I am willing to trust them with you upon his proposition that they show rascality or double-dealing. I deny that they do.

The Judge does not seem at all disposed to have peace, but I find he is disposed to have a personal warfare with me. He says that my oath would

not be taken against the bare word of Charles H. Lanphier or Thomas L. Harris. Well, that is altogether a matter of opinion. It is certainly not for me to vaunt my word against oaths of these gentlemen, but I will tell Judge Douglas again the facts upon which I "dared" to say they proved a forgery. I pointed out at Galesburgh that the publication of these resolutions in the Illinois State Register could not have been the result of accident, as the proceedings of that meeting bore unmistakable evidence of being done by a man who knew it was a forgery; that it was a publication partly taken from the real proceedings of the Convention, and partly from the proceedings of a convention at another place, which showed that he had the real proceedings before him, and taking one part of the resolutions, he threw out another part, and substituted false and fraudulent ones in their stead. I pointed that out to him, and also that his friend Lanphier, who was editor of the Register at that time and now is, must have known how it was done. Now, whether he did it, or got some friend to do it for him, I could not tell, but he certainly knew all about it. I pointed out to Judge Douglas that in his Freeport speech he had promised to investigate that matter. Does he now say that he did not make that promise? I have a right to ask why he did not keep it. I call upon him to tell here to-day why he did not keep that promise? That fraud has been traced up so that it lies between him, Harris, and Lanphier. There is little room for escape for Lanphier. Lanphier is doing the Judge good service, and Douglas desires his word to be taken for the truth. He desires Lanphier to be taken as authority in what he states in his newspaper. He desires Harris to be taken as a man of vast credibility; and when this thing lies among them, they will not press it to show where the guilt really belongs. Now, as he has said that he would investigate it, and implied that he would tell us the result of his investigation, I demand of him to tell why he did not investigate it, if he did not; and if he did, why he won't tell the result. I call upon him for that.

This is the third time that Judge Douglas has assumed that he learned about these resolutions by Harris's attempting to use them against Norton on the floor of Congress. I tell Judge Douglas the public records of the country show that he himself attempted it upon Trumbull a month before Harris tried them on Norton; that Harris had the opportunity of learning it from him, rather than he from Harris. I now ask his attention to that part of the record on the case. My friends, I am not disposed to detain you longer in regard to that matter.

I am told that I still have five minutes left. There is another matter I wish to call attention to. He says, when he discovered there was a mistake in that case, he came forward magnanimously, without my calling his attention to it, and explained it. I will tell you how he became so magnanimous. When the newspapers of our side had discovered and published it, and put it beyond his power to deny it, then he came forward and made a virtue of necessity by acknowledging it. Now he argues that all the point there was in those resolutions, although never passed at Springfield, is retained by their being passed at other localities. Is that true? He said I had a hand in passing them, in his opening speech, that I was in the convention and helped to pass them. Do the resolutions touch me at all? It strikes me there is some difference between holding a man responsible for an act which he has not done and holding him responsible for an act that he has done. You will judge whether there is any difference in the "spots." And he has taken credit for great magnanimity in coming forward and acknowledging what is proved on him beyond even the capacity of Judge Douglas to deny; and he has more capacity in that way than any other living man.

Then he wants to know why I won't withdraw the charge in regard to a conspiracy to make slavery national, as he has withdrawn the one he made. May it please his worship, I will withdraw it when it is proven false on me as that was proven false on him. I will add a little more than that, I will withdraw it whenever a reasonable man shall be brought to believe that the charge is not true. I have asked Judge Douglas's attention to certain matters of fact tending to prove the charge of a conspiracy to nationalize slavery, and he says he convinces me that this is all untrue because Buchanan was not in the country at that time, and because the Dred Scott case had not then got into the Supreme Court; and he says that I say the Democratic owners of Dred Scott got up the case. I never did say that I defy Judge Douglas to show that I ever said so, for I never uttered it. [One of Mr. Douglas's reporters gesticulated affirmatively at Mr. Lincoln.] I don't care if your hireling does say I did, I tell you myself that I never said the "Democratic" owners of Dred Scott got up the case. I have never pretended to know whether Dred Scott's owners were Democrats, or Abolitionists, or Freesoilers or Border Ruffians. I have said that there is evidence about the case tending to show that it was a made-up case, for the purpose of getting that decision. I have said that that evidence was very strong in the fact that when Dred Scott was declared to be a slave, the owner of him made him

free, showing that he had had the case tried and the question settled for such use as could be made of that decision; he cared nothing about the property thus declared to be his by that decision. But my time is out, and I can say no more.

LAST DEBATE, AT ALTON, OCTOBER 15, 1858

Mr. LINCOLN'S REPLY

LADIES AND GENTLEMEN:—I have been somewhat, in my own mind, complimented by a large portion of Judge Douglas's speech,—I mean that portion which he devotes to the controversy between himself and the present Administration. This is the seventh time Judge Douglas and myself have met in these joint discussions, and he has been gradually improving in regard to his war with the Administration. At Quincy, day before yesterday, he was a little more severe upon the Administration than I had heard him upon any occasion, and I took pains to compliment him for it. I then told him to give it to them with all the power he had; and as some of them were present, I told them I would be very much obliged if they would give it to him in about the same way. I take it he has now vastly improved upon the attack he made then upon the Administration. I flatter myself he has really taken my advice on this subject. All I can say now is to re-commend to him and to them what I then commended,—to prosecute the war against one another in the most vigorous manner. I say to them again: "Go it, husband! —Go it, bear!"

There is one other thing I will mention before I leave this branch of the discussion,—although I do not consider it much of my business, anyway. I refer to that part of the Judge's remarks where he undertakes to involve Mr. Buchanan in an inconsistency. He reads something from Mr. Buchanan, from which he undertakes to involve him in an inconsistency; and he gets something of a cheer for having done so. I would only remind the Judge that while he is very valiantly fighting for the Nebraska Bill and the repeal of the Missouri Compromise, it has been but a little while since he was the valiant advocate of the Missouri Compromise. I want to know if Buchanan has not as much right to be inconsistent as Douglas has? Has Douglas the exclusive right, in this country, of being on all sides of all questions? Is nobody allowed that high privilege but himself? Is he to have an entire monopoly on that subject?

So far as Judge Douglas addressed his speech to me, or so far as it was about me, it is my business to pay some attention to it. I have heard the Judge state two or three times what he has stated to-day, that in a speech

which I made at Springfield, Illinois, I had in a very especial manner complained that the Supreme Court in the Dred Scott case had decided that a negro could never be a citizen of the United States. I have omitted by some accident heretofore to analyze this statement, and it is required of me to notice it now. In point of fact it is untrue. I never have complained especially of the Dred Scott decision because it held that a negro could not be a citizen, and the Judge is always wrong when he says I ever did so complain of it. I have the speech here, and I will thank him or any of his friends to show where I said that a negro should be a citizen, and complained especially of the Dred Scott decision because it declared he could not be one. I have done no such thing; and Judge Douglas, so persistently insisting that I have done so, has strongly impressed me with the belief of a predetermination on his part to misrepresent me. He could not get his foundation for insisting that I was in favor of this negro equality anywhere else as well as he could by assuming that untrue proposition. Let me tell this audience what is true in regard to that matter; and the means by which they may correct me if I do not tell them truly is by a recurrence to the speech itself. I spoke of the Dred Scott decision in my Springfield speech, and I was then endeavoring to prove that the Dred Scott decision was a portion of a system or scheme to make slavery national in this country. I pointed out what things had been decided by the court. I mentioned as a fact that they had decided that a negro could not be a citizen; that they had done so, as I supposed, to deprive the negro, under all circumstances, of the remotest possibility of ever becoming a citizen and claiming the rights of a citizen of the United States under a certain clause of the Constitution. I stated that, without making any complaint of it at all. I then went on and stated the other points decided in the case; namely, that the bringing of a negro into the State of Illinois and holding him in slavery for two years here was a matter in regard to which they would not decide whether it would make him free or not; that they decided the further point that taking him into a United States Territory where slavery was prohibited by Act of Congress did not make him free, because that Act of Congress, as they held, was unconstitutional. I mentioned these three things as making up the points decided in that case. I mentioned them in a lump, taken in connection with the introduction of the Nebraska Bill, and the amendment of Chase, offered at the time, declaratory of the right of the people of the Territories to exclude slavery, which was voted down by the friends of the

bill. I mentioned all these things together, as evidence tending to prove a combination and conspiracy to make the institution of slavery national. In that connection and in that way I mentioned the decision on the point that a negro could not be a citizen, and in no other connection.

Out of this Judge Douglas builds up his beautiful fabrication of my purpose to introduce a perfect social and political equality between the white and black races. His assertion that I made an "especial objection" (that is his exact language) to the decision on this account is untrue in point of fact.

Now, while I am upon this subject, and as Henry Clay has been alluded to, I desire to place myself, in connection with Mr. Clay, as nearly right before this people as may be. I am quite aware what the Judge's object is here by all these allusions. He knows that we are before an audience having strong sympathies southward, by relationship, place of birth, and so on. He desires to place me in an extremely Abolition attitude. He read upon a former occasion, and alludes, without reading, to-day to a portion of a speech which I delivered in Chicago. In his quotations from that speech, as he has made them upon former occasions, the extracts were taken in such a way as, I suppose, brings them within the definition of what is called garbling,—taking portions of a speech which, when taken by themselves, do not present the entire sense of the speaker as expressed at the time. I propose, therefore, out of that same speech, to show how one portion of it which he skipped over (taking an extract before and an extract after) will give a different idea, and the true idea I intended to convey. It will take me some little time to read it, but I believe I will occupy the time that way.

You have heard him frequently allude to my controversy with him in regard to the Declaration of Independence. I confess that I have had a struggle with Judge Douglas on that matter, and I will try briefly to place myself right in regard to it on this occasion. I said—and it is between the extracts Judge Douglas has taken from this speech, and put in his published speeches:

"It may be argued that there are certain conditions that make necessities and impose them upon us, and to the extent that a necessity is imposed upon a man he must submit to it. I think that was the condition in which we found ourselves when we established this government. We had slaves among us, we could not get our Constitution unless we permitted them to remain in

slavery, we could not secure the good we did secure if we grasped for more; and having by necessity submitted to that much, it does not destroy the principle that is the charter of our liberties. Let the charter remain as our standard."

Now, I have upon all occasions declared as strongly as Judge Douglas against the disposition to interfere with the existing institution of slavery. You hear me read it from the same speech from which he takes garbled extracts for the purpose of proving upon me a disposition to interfere with the institution of slavery, and establish a perfect social and political equality between negroes and white people.

Allow me while upon this subject briefly to present one other extract from a speech of mine, more than a year ago, at Springfield, in discussing this very same question, soon after Judge Douglas took his ground that negroes were, not included in the Declaration of Independence:

"I think the authors of that notable instrument intended to include all men, but they did not mean to declare all men equal in all respects. They did not mean to say all men were equal in color, size, intellect, moral development, or social capacity. They defined with tolerable distinctness in what they did consider all men created equal,—equal in certain inalienable rights, among which are life, liberty, and the pursuit of happiness. This they said, and this they meant. They did not mean to assert the obvious untruth that all were then actually enjoying that equality, or yet that they were about to confer it immediately upon them. In fact they had no power to confer such a boon. They meant simply to declare the right, so that the enforcement of it might follow as fast as circumstances should permit.

"They meant to set up a standard maxim for free society which should be familiar to all,—constantly looked to, constantly labored for, and even, though never perfectly attained, constantly approximated, and thereby constantly spreading and deepening its influence, and augmenting the happiness and value of life to all people, of all colors, everywhere."

There again are the sentiments I have expressed in regard to the Declaration of Independence upon a former occasion,—sentiments which have been put in print and read wherever anybody cared to know what so humble an individual as myself chose to say in regard to it.

At Galesburgh, the other day, I said, in answer to Judge Douglas, that three years ago there never had been a man, so far as I knew or believed, in

the whole world, who had said that the Declaration of Independence did not include negroes in the term "all men." I reassert it to-day. I assert that Judge Douglas and all his friends may search the whole records of the country, and it will be a matter of great astonishment to me if they shall be able to find that one human being three years ago had ever uttered the astounding sentiment that the term "all men" in the Declaration did not include the negro. Do not let me be misunderstood. I know that more than three years ago there were men who, finding this assertion constantly in the way of their schemes to bring about the ascendancy and perpetuation of slavery, denied the truth of it. I know that Mr. Calhoun and all the politicians of his school denied the truth of the Declaration. I know that it ran along in the mouth of some Southern men for a period of years, ending at last in that shameful, though rather forcible, declaration of Pettit of Indiana, upon the floor of the United States Senate, that the Declaration of Independence was in that respect "a self-evident lie," rather than a self-evident truth. But I say, with a perfect knowledge of all this hawking at the Declaration without directly attacking it, that three years ago there never had lived a man who had ventured to assail it in the sneaking way of pretending to believe it, and then asserting it did not include the negro. I believe the first man who ever said it was Chief Justice Taney in the Dred Scott case, and the next to him was our friend Stephen A. Douglas. And now it has become the catchword of the entire party. I would like to call upon his friends everywhere to consider how they have come in so short a time to view this matter in a way so entirely different from their former belief; to ask whether they are not being borne along by an irresistible current,—whither, they know not.

In answer to my proposition at Galesburgh last week, I see that some man in Chicago has got up a letter, addressed to the Chicago Times, to show, as he professes, that somebody had said so before; and he signs himself "An Old-Line Whig," if I remember correctly. In the first place, I would say he was not an old-line Whig. I am somewhat acquainted with old-line Whigs from the origin to the end of that party; I became pretty well acquainted with them, and I know they always had some sense, whatever else you could ascribe to them. I know there never was one who had not more sense than to try to show by the evidence he produces that some men had, prior to the time I named, said that negroes were not included in the term "all men" in the Declaration of Independence. What is the evidence he produces? I will bring forward his evidence, and let you see what he offers by way of

showing that somebody more than three years ago had said negroes were not included in the Declaration. He brings forward part of a speech from Henry Clay,—the part of the speech of Henry Clay which I used to bring forward to prove precisely the contrary. I guess we are surrounded to some extent to-day by the old friends of Mr. Clay, and they will be glad to hear anything from that authority. While he was in Indiana a man presented a petition to liberate his negroes, and he (Mr. Clay) made a speech in answer to it, which I suppose he carefully wrote out himself and caused to be published. I have before me an extract from that speech which constitutes the evidence this pretended "Old-Line Whig" at Chicago brought forward to show that Mr. Clay did n't suppose the negro was included in the Declaration of Independence. Hear what Mr. Clay said:

"And what is the foundation of this appeal to me in Indiana to liberate the slaves under my care in Kentucky? It is a general declaration in the act announcing to the world the independence of the thirteen American colonies, that all men are created equal. Now, as an abstract principle, there is no doubt of the truth of that declaration; and it is desirable, in the original construction of society and in organized societies, to keep it in view as a great fundamental principle. But, then, I apprehend that in no society that ever did exist, or ever shall be formed, was or can the equality asserted among the members of the human race be practically enforced and carried out. There are portions, large portions, women, minors, insane, culprits, transient sojourners, that will always probably remain subject to the government of another portion of the community.

"That declaration, whatever may be the extent of its import, was made by the delegations of the thirteen States. In most of them slavery existed, and had long existed, and was established by law. It was introduced and forced upon the colonies by the paramount law of England. Do you believe that in making that declaration the States that concurred in it intended that it should be tortured into a virtual emancipation of all the slaves within their respective limits? Would Virginia and other Southern States have ever united in a declaration which was to be interpreted into an abolition of slavery among them? Did any one of the thirteen colonies entertain such a design or expectation? To impute such a secret and unavowed purpose, would be to charge a political fraud upon the noblest band of patriots that ever assembled in council,—a fraud upon the Confederacy of the Revolution; a fraud upon the union of those States whose Constitution not

only recognized the lawfulness of slavery, but permitted the importation of slaves from Africa until the year 1808."

This is the entire quotation brought forward to prove that somebody previous to three years ago had said the negro was not included in the term "all men" in the Declaration. How does it do so? In what way has it a tendency to prove that? Mr. Clay says it is true as an abstract principle that all men are created equal, but that we cannot practically apply it in all cases. He illustrates this by bringing forward the cases of females, minors, and insane persons, with whom it cannot be enforced; but he says it is true as an abstract principle in the organization of society as well as in organized society and it should be kept in view as a fundamental principle. Let me read a few words more before I add some comments of my own. Mr. Clay says, a little further on:

"I desire no concealment of my opinions in regard to the institution of slavery. I look upon it as a great evil, and deeply lament that we have derived it from the parental government and from our ancestors. I wish every slave in the United States was in the country of his ancestors. But here they are, and the question is, How can they be best dealt with? If a state of nature existed, and we were about to lay the foundations of society, no man would be more strongly opposed than I should be to incorporate the institution of slavery amongst its elements."

Now, here in this same book, in this same speech, in this same extract, brought forward to prove that Mr. Clay held that the negro was not included in the Declaration of Independence, is no such statement on his part, but the declaration that it is a great fundamental truth which should be constantly kept in view in the organization of society and in societies already organized. But if I say a word about it; if I attempt, as Mr. Clay said all good men ought to do, to keep it in view; if, in this "organized society," I ask to have the public eye turned upon it; if I ask, in relation to the organization of new Territories, that the public eye should be turned upon it, forthwith I am vilified as you hear me to-day. What have I done that I have not the license of Henry Clay's illustrious example here in doing? Have I done aught that I have not his authority for, while maintaining that in organizing new Territories and societies this fundamental principle should be regarded, and in organized society holding it up to the public view and recognizing what he recognized as the great principle of free government?

And when this new principle—this new proposition that no human being ever thought of three years ago—is brought forward, I combat it as having an evil tendency, if not an evil design. I combat it as having a tendency to dehumanize the negro, to take away from him the right of ever striving to be a man. I combat it as being one of the thousand things constantly done in these days to prepare the public mind to make property, and nothing but property, of the negro in all the States of this Union.

But there is a point that I wish, before leaving this part of the discussion, to ask attention to. I have read and I repeat the words of Henry Clay:

"I desire no concealment of my opinions in regard to the institution of slavery. I look upon it as a great evil, and deeply lament that we have derived it from the parental government and from our ancestors. I wish every slave in the United States was in the country of his ancestors. But here they are, and the question is, How can they be best dealt with? If a state of nature existed, and we were about to lay the foundations of society, no man would be more strongly opposed than I should be to incorporate the institution of slavery amongst its elements."

The principle upon which I have insisted in this canvass is in relation to laying the foundations of new societies. I have never sought to apply these principles to the old States for the purpose of abolishing slavery in those States. It is nothing but a miserable perversion of what I have said, to assume that I have declared Missouri, or any other slave State, shall emancipate her slaves; I have proposed no such thing. But when Mr. Clay says that in laying the foundations of society in our Territories where it does not exist, he would be opposed to the introduction of slavery as an element, I insist that we have his warrant—his license—for insisting upon the exclusion of that element which he declared in such strong and emphatic language was most hurtful to him.

Judge Douglas has again referred to a Springfield speech in which I said "a house divided against itself cannot stand." The Judge has so often made the entire quotation from that speech that I can make it from memory. I used this language:

"We are now far into the fifth year since a policy was initiated with the avowed object and confident promise of putting an end to the slavery agitation. Under the operation of this policy, that agitation has not only not ceased, but has constantly augmented. In my opinion it will not cease until a

crisis shall have been reached and passed. 'A house divided against itself cannot stand.' I believe this government cannot endure permanently, half slave and half free. I do not expect the house to fall, but I do expect it will cease to be divided. It will become all one thing, or all the other. Either the opponents of slavery will arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction, or its advocates will push it forward till it shall become alike lawful in all the States, old as well as new, North as well as South."

That extract and the sentiments expressed in it have been extremely offensive to Judge Douglas. He has warred upon them as Satan wars upon the Bible. His perversions upon it are endless. Here now are my views upon it in brief:

I said we were now far into the fifth year since a policy was initiated with the avowed object and confident promise of putting an end to the slavery agitation. Is it not so? When that Nebraska Bill was brought forward four years ago last January, was it not for the "avowed object" of putting an end to the slavery agitation? We were to have no more agitation in Congress; it was all to be banished to the Territories. By the way, I will remark here that, as Judge Douglas is very fond of complimenting Mr. Crittenden in these days, Mr. Crittenden has said there was a falsehood in that whole business, for there was no slavery agitation at that time to allay. We were for a little while quiet on the troublesome thing, and that very allaying plaster of Judge Douglas's stirred it up again. But was it not understood or intimated with the "confident promise" of putting an end to the slavery agitation? Surely it was. In every speech you heard Judge Douglas make, until he got into this "imbroglio," as they call it, with the Administration about the Lecompton Constitution, every speech on that Nebraska Bill was full of his felicitations that we were just at the end of the slavery agitation. The last tip of the last joint of the old serpent's tail was just drawing out of view. But has it proved so? I have asserted that under that policy that agitation "has not only not ceased, but has constantly augmented." When was there ever a greater agitation in Congress than last winter? When was it as great in the country as to-day?

There was a collateral object in the introduction of that Nebraska policy, which was to clothe the people of the Territories with a superior degree of self-government, beyond what they had ever had before. The first object

and the main one of conferring upon the people a higher degree of "self-government" is a question of fact to be determined by you in answer to a single question. Have you ever heard or known of a people anywhere on earth who had as little to do as, in the first instance of its use, the people of Kansas had with this same right of "self-government"? In its main policy and in its collateral object, it has been nothing but a living, creeping lie from the time of its introduction till to-day.

I have intimated that I thought the agitation would not cease until a crisis should have been reached and passed. I have stated in what way I thought it would be reached and passed. I have said that it might go one way or the other. We might, by arresting the further spread of it, and placing it where the fathers originally placed it, put it where the public mind should rest in the belief that it was in the course of ultimate extinction. Thus the agitation may cease. It may be pushed forward until it shall become alike lawful in all the States, old as well as new, North as well as South. I have said, and I repeat, my wish is that the further spread of it may be arrested, and that it may be where the public mind shall rest in the belief that it is in the course of ultimate extinction—I have expressed that as my wish I entertain the opinion, upon evidence sufficient to my mind, that the fathers of this government placed that institution where the public mind did rest in the belief that it was in the course of ultimate extinction. Let me ask why they made provision that the source of slavery—the African slave-trade—should be cut off at the end of twenty years? Why did they make provision that in all the new territory we owned at that time slavery should be forever inhibited? Why stop its spread in one direction, and cut off its source in another, if they did not look to its being placed in the course of its ultimate extinction?

Again: the institution of slavery is only mentioned in the Constitution of the United States two or three times, and in neither of these cases does the word "slavery" or "negro race" occur; but covert language is used each time, and for a purpose full of significance. What is the language in regard to the prohibition of the African slave-trade? It runs in about this way:

"The migration or importation of such persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the year one thousand eight hundred and eight."

The next allusion in the Constitution to the question of slavery and the black race is on the subject of the basis of representation, and there the language used is:

"Representatives and direct taxes shall be apportioned among the several States which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, three-fifths of all other persons."

It says "persons," not slaves, not negroes; but this "three-fifths" can be applied to no other class among us than the negroes.

Lastly, in the provision for the reclamation of fugitive slaves, it is said:

"No person held to service or labor in one State, under the laws thereof, escaping into another, shall in consequence of any law or regulation therein be discharged from such service or labor, but shall be delivered up, on claim of the party to whom such service or labor may be due."

There again there is no mention of the word "negro" or of slavery. In all three of these places, being the only allusions to slavery in the instrument, covert language is used. Language is used not suggesting that slavery existed or that the black race were among us. And I understand the contemporaneous history of those times to be that covert language was used with a purpose, and that purpose was that in our Constitution, which it was hoped and is still hoped will endure forever,—when it should be read by intelligent and patriotic men, after the institution of slavery had passed from among us,—there should be nothing on the face of the great charter of liberty suggesting that such a thing as negro slavery had ever existed among us. This is part of the evidence that the fathers of the government expected and intended the institution of slavery to come to an end. They expected and intended that it should be in the course of ultimate extinction. And when I say that I desire to see the further spread of it arrested, I only say I desire to see that done which the fathers have first done. When I say I desire to see it placed where the public mind will rest in the belief that it is in the course of ultimate extinction, I only say I desire to see it placed where they placed it. It is not true that our fathers, as Judge Douglas assumes, made this government part slave and part free. Understand the sense in which he puts it. He assumes that slavery is a rightful thing within itself,—was introduced by the framers of the Constitution. The exact truth is, that they found the

institution existing among us, and they left it as they found it. But in making the government they left this institution with many clear marks of disapprobation upon it. They found slavery among them, and they left it among them because of the difficulty—the absolute impossibility—of its immediate removal. And when Judge Douglas asks me why we cannot let it remain part slave and part free, as the fathers of the government made it, he asks a question based upon an assumption which is itself a falsehood; and I turn upon him and ask him the question, when the policy that the fathers of the government had adopted in relation to this element among us was the best policy in the world, the only wise policy, the only policy that we can ever safely continue upon that will ever give us peace, unless this dangerous element masters us all and becomes a national institution,—I turn upon him and ask him why he could not leave it alone. I turn and ask him why he was driven to the necessity of introducing a new policy in regard to it. He has himself said he introduced a new policy. He said so in his speech on the 22d of March of the present year, 1858. I ask him why he could not let it remain where our fathers placed it. I ask, too, of Judge Douglas and his friends why we shall not again place this institution upon the basis on which the fathers left it. I ask you, when he infers that I am in favor of setting the free and slave States at war, when the institution was placed in that attitude by those who made the Constitution, did they make any war? If we had no war out of it when thus placed, wherein is the ground of belief that we shall have war out of it if we return to that policy? Have we had any peace upon this matter springing from any other basis? I maintain that we have not. I have proposed nothing more than a return to the policy of the fathers.

I confess, when I propose a certain measure of policy, it is not enough for me that I do not intend anything evil in the result, but it is incumbent on me to show that it has not a tendency to that result. I have met Judge Douglas in that point of view. I have not only made the declaration that I do not mean to produce a conflict between the States, but I have tried to show by fair reasoning, and I think I have shown to the minds of fair men, that I propose nothing but what has a most peaceful tendency. The quotation that I happened to make in that Springfield Speech, that "a house divided against itself cannot stand," and which has proved so offensive to the judge, was part and parcel of the same thing. He tries to show that variety in the democratic institutions of the different States is necessary and indispensable. I do not dispute it. I have no controversy with Judge Douglas

about that. I shall very readily agree with him that it would be foolish for us to insist upon having a cranberry law here in Illinois, where we have no cranberries, because they have a cranberry law in Indiana, where they have cranberries. I should insist that it would be exceedingly wrong in us to deny to Virginia the right to enact oyster laws, where they have oysters, because we want no such laws here. I understand, I hope, quite as well as Judge Douglas or anybody else, that the variety in the soil and climate and face of the country, and consequent variety in the industrial pursuits and productions of a country, require systems of law conforming to this variety in the natural features of the country. I understand quite as well as Judge Douglas that if we here raise a barrel of flour more than we want, and the Louisianians raise a barrel of sugar more than they want, it is of mutual advantage to exchange. That produces commerce, brings us together, and makes us better friends. We like one another the more for it. And I understand as well as Judge Douglas, or anybody else, that these mutual accommodations are the cements which bind together the different parts of this Union; that instead of being a thing to "divide the house,"—figuratively expressing the Union,—they tend to sustain it; they are the props of the house, tending always to hold it up.

But when I have admitted all this, I ask if there is any parallel between these things and this institution of slavery? I do not see that there is any parallel at all between them. Consider it. When have we had any difficulty or quarrel amongst ourselves about the cranberry laws of Indiana, or the oyster laws of Virginia, or the pine-lumber laws of Maine, or the fact that Louisiana produces sugar, and Illinois flour? When have we had any quarrels over these things? When have we had perfect peace in regard to this thing which I say is an element of discord in this Union? We have sometimes had peace, but when was it? It was when the institution of slavery remained quiet where it was. We have had difficulty and turmoil whenever it has made a struggle to spread itself where it was not. I ask, then, if experience does not speak in thunder-tones telling us that the policy which has given peace to the country heretofore, being returned to, gives the greatest promise of peace again. You may say, and Judge Douglas has intimated the same thing, that all this difficulty in regard to the institution of slavery is the mere agitation of office-seekers and ambitious Northern politicians. He thinks we want to get "his place," I suppose. I agree that there are office-seekers amongst us. The Bible says somewhere that we are

desperately selfish. I think we would have discovered that fact without the Bible. I do not claim that I am any less so than the average of men, but I do claim that I am not more selfish than Judge Douglas.

But is it true that all the difficulty and agitation we have in regard to this institution of slavery spring from office-seeking, from the mere ambition of politicians? Is that the truth? How many times have we had danger from this question? Go back to the day of the Missouri Compromise. Go back to the nullification question, at the bottom of which lay this same slavery question. Go back to the time of the annexation of Texas. Go back to the troubles that led to the Compromise of 1850. You will find that every time, with the single exception of the Nullification question, they sprung from an endeavor to spread this institution. There never was a party in the history of this country, and there probably never will be, of sufficient strength to disturb the general peace of the country. Parties themselves may be divided and quarrel on minor questions, yet it extends not beyond the parties themselves. But does not this question make a disturbance outside of political circles? Does it not enter into the churches and rend them asunder? What divided the great Methodist Church into two parts, North and South? What has raised this constant disturbance in every Presbyterian General Assembly that meets? What disturbed the Unitarian Church in this very city two years ago? What has jarred and shaken the great American Tract Society recently, not yet splitting it, but sure to divide it in the end? Is it not this same mighty, deep-seated power that somehow operates on the minds of men, exciting and stirring them up in every avenue of society,—in politics, in religion, in literature, in morals, in all the manifold relations of life? Is this the work of politicians? Is that irresistible power, which for fifty years has shaken the government and agitated the people, to be stifled and subdued by pretending that it is an exceedingly simple thing, and we ought not to talk about it? If you will get everybody else to stop talking about it, I assure you I will quit before they have half done so. But where is the philosophy or statesmanship which assumes that you can quiet that disturbing element in our society which has disturbed us for more than half a century, which has been the only serious danger that has threatened our institutions,—I say, where is the philosophy or the statesmanship based on the assumption that we are to quit talking about it, and that the public mind is all at once to cease being agitated by it? Yet this is the policy here in the North that Douglas is advocating, that we are to care nothing about it! I ask

you if it is not a false philosophy. Is it not a false statesmanship that undertakes to build up a system of policy upon the basis of caring nothing about the very thing that everybody does care the most about—a thing which all experience has shown we care a very great deal about?

The Judge alludes very often in the course of his remarks to the exclusive right which the States have to decide the whole thing for themselves. I agree with him very readily that the different States have that right. He is but fighting a man of straw when he assumes that I am contending against the right of the States to do as they please about it. Our controversy with him is in regard to the new Territories. We agree that when the States come in as States they have the right and the power to do as they please. We have no power as citizens of the free-States, or in our Federal capacity as members of the Federal Union through the General Government, to disturb slavery in the States where it exists. We profess constantly that we have no more inclination than belief in the power of the government to disturb it; yet we are driven constantly to defend ourselves from the assumption that we are warring upon the rights of the States. What I insist upon is, that the new Territories shall be kept free from it while in the Territorial condition. Judge Douglas assumes that we have no interest in them,—that we have no right whatever to interfere. I think we have some interest. I think that as white men we have. Do we not wish for an outlet for our surplus population, if I may so express myself? Do we not feel an interest in getting to that outlet with such institutions as we would like to have prevail there? If you go to the Territory opposed to slavery, and another man comes upon the same ground with his slave, upon the assumption that the things are equal, it turns out that he has the equal right all his way, and you have no part of it your way. If he goes in and makes it a slave Territory, and by consequence a slave State, is it not time that those who desire to have it a free State were on equal ground? Let me suggest it in a different way. How many Democrats are there about here ["A thousand"] who have left slave States and come into the free State of Illinois to get rid of the institution of slavery? [Another voice: "A thousand and one."] I reckon there are a thousand and one. I will ask you, if the policy you are now advocating had prevailed when this country was in a Territorial condition, where would you have gone to get rid of it? Where would you have found your free State or Territory to go to? And when hereafter, for any cause, the people in this

place shall desire to find new homes, if they wish to be rid of the institution, where will they find the place to go to?

Now, irrespective of the moral aspect of this question as to whether there is a right or wrong in enslaving a negro, I am still in favor of our new Territories being in such a condition that white men may find a home,—may find some spot where they can better their condition; where they can settle upon new soil and better their condition in life. I am in favor of this, not merely (I must say it here as I have elsewhere) for our own people who are born amongst us, but as an outlet for free white people everywhere the world over—in which Hans, and Baptiste, and Patrick, and all other men from all the world, may find new homes and better their conditions in life.

I have stated upon former occasions, and I may as well state again, what I understand to be the real issue in this controversy between Judge Douglas and myself. On the point of my wanting to make war between the free and the slave States, there has been no issue between us. So, too, when he assumes that I am in favor of producing a perfect social and political equality between the white and black races. These are false issues, upon which Judge Douglas has tried to force the controversy. There is no foundation in truth for the charge that I maintain either of these propositions. The real issue in this controversy—the one pressing upon every mind—is the sentiment on the part of one class that looks upon the institution of slavery as a wrong, and of another class that does not look upon it as a wrong. The sentiment that contemplates the institution of slavery in this country as a wrong is the sentiment of the Republican party. It is the sentiment around which all their actions, all their arguments, circle, from which all their propositions radiate. They look upon it as being a moral, social, and political wrong; and while they contemplate it as such, they nevertheless have due regard for its actual existence among us, and the difficulties of getting rid of it in any satisfactory way, and to all the constitutional obligations thrown about it. Yet, having a due regard for these, they desire a policy in regard to it that looks to its not creating any more danger. They insist that it should, as far as may be, be treated as a wrong; and one of the methods of treating it as a wrong is to make provision that it shall grow no larger. They also desire a policy that looks to a peaceful end of slavery at some time. These are the views they entertain in regard to it as I understand them; and all their sentiments, all their arguments and propositions, are brought within this range. I have said, and I

repeat it here, that if there be a man amongst us who does not think that the institution of slavery is wrong in any one of the aspects of which I have spoken, he is misplaced, and ought not to be with us. And if there be a man amongst us who is so impatient of it as a wrong as to disregard its actual presence among us and the difficulty of getting rid of it suddenly in a satisfactory way, and to disregard the constitutional obligations thrown about it, that man is misplaced if he is on our platform. We disclaim sympathy with him in practical action. He is not placed properly with us.

On this subject of treating it as a wrong, and limiting its spread, let me say a word. Has anything ever threatened the existence of this Union save and except this very institution of slavery? What is it that we hold most dear amongst us? Our own liberty and prosperity. What has ever threatened our liberty and prosperity, save and except this institution of slavery? If this is true, how do you propose to improve the condition of things by enlarging slavery, by spreading it out and making it bigger? You may have a wen or cancer upon your person, and not be able to cut it out, lest you bleed to death; but surely it is no way to cure it, to engraft it and spread it over your whole body. That is no proper way of treating what you regard a wrong. You see this peaceful way of dealing with it as a wrong, restricting the spread of it, and not allowing it to go into new countries where it has not already existed. That is the peaceful way, the old-fashioned way, the way in which the fathers themselves set us the example.

On the other hand, I have said there is a sentiment which treats it as not being wrong. That is the Democratic sentiment of this day. I do not mean to say that every man who stands within that range positively asserts that it is right. That class will include all who positively assert that it is right, and all who, like Judge Douglas, treat it as indifferent and do not say it is either right or wrong. These two classes of men fall within the general class of those who do not look upon it as a wrong. And if there be among you anybody who supposes that he, as a Democrat, can consider himself "as much opposed to slavery as anybody," I would like to reason with him. You never treat it as a wrong. What other thing that you consider as a wrong do you deal with as you deal with that? Perhaps you say it is wrong—but your leader never does, and you quarrel with anybody who says it is wrong. Although you pretend to say so yourself, you can find no fit place to deal with it as a wrong. You must not say anything about it in the free States, because it is not here. You must not say anything about it in the slave States,

because it is there. You must not say anything about it in the pulpit, because that is religion, and has nothing to do with it. You must not say anything about it in politics, because that will disturb the security of "my place." There is no place to talk about it as being a wrong, although you say yourself it is a wrong. But, finally, you will screw yourself up to the belief that if the people of the slave States should adopt a system of gradual emancipation on the slavery question, you would be in favor of it. You would be in favor of it. You say that is getting it in the right place, and you would be glad to see it succeed. But you are deceiving yourself. You all know that Frank Blair and Gratz Brown, down there in St. Louis, undertook to introduce that system in Missouri. They fought as valiantly as they could for the system of gradual emancipation which you pretend you would be glad to see succeed. Now, I will bring you to the test. After a hard fight they were beaten, and when the news came over here, you threw up your hats and hurraed for Democracy. More than that, take all the argument made in favor of the system you have proposed, and it carefully excludes the idea that there is anything wrong in the institution of slavery. The arguments to sustain that policy carefully exclude it. Even here to-day you heard Judge Douglas quarrel with me because I uttered a wish that it might sometime come to an end. Although Henry Clay could say he wished every slave in the United States was in the country of his ancestors, I am denounced by those pretending to respect Henry Clay for uttering a wish that it might sometime, in some peaceful way, come to an end. The Democratic policy in regard to that institution will not tolerate the merest breath, the slightest hint, of the least degree of wrong about it. Try it by some of Judge Douglas's arguments. He says he "don't care whether it is voted up or voted down" in the Territories. I do not care myself, in dealing with that expression, whether it is intended to be expressive of his individual sentiments on the subject, or only of the national policy he desires to have established. It is alike valuable for my purpose. Any man can say that who does not see anything wrong in slavery; but no man can logically say it who does see a wrong in it, because no man can logically say he don't care whether a wrong is voted up or voted down. He may say he don't care whether an indifferent thing is voted up or down, but he must logically have a choice between a right thing and a wrong thing. He contends that whatever community wants slaves has a right to have them. So they have, if it is not a wrong. But if it is a wrong, he cannot say people have a right to

do wrong. He says that upon the score of equality slaves should be allowed to go in a new Territory, like other property. This is strictly logical if there is no difference between it and other property. If it and other property are equal, this argument is entirely logical. But if you insist that one is wrong and the other right, there is no use to institute a comparison between right and wrong. You may turn over everything in the Democratic policy from beginning to end, whether in the shape it takes on the statute book, in the shape it takes in the Dred Scott decision, in the shape it takes in conversation, or the shape it takes in short maxim-like arguments,—it everywhere carefully excludes the idea that there is anything wrong in it.

That is the real issue. That is the issue that will continue in this country when these poor tongues of Judge Douglas and myself shall be silent. It is the eternal struggle between these two principles—right and wrong—throughout the world. They are the two principles that have stood face to face from the beginning of time, and will ever continue to struggle. The one is the common right of humanity, and the other the divine right of kings. It is the same principle in whatever shape it develops itself. It is the same spirit that says, "You work and toil and earn bread, and I'll eat it." No matter in what shape it comes, whether from the mouth of a king who seeks to bestride the people of his own nation and live by the fruit of their labor, or from one race of men as an apology for enslaving another race, it is the same tyrannical principle. I was glad to express my gratitude at Quincy, and I re-express it here, to Judge Douglas,—that he looks to no end of the institution of slavery. That will help the people to see where the struggle really is. It will hereafter place with us all men who really do wish the wrong may have an end. And whenever we can get rid of the fog which obscures the real question, when we can get Judge Douglas and his friends to avow a policy looking to its perpetuation,—we can get out from among that class of men and bring them to the side of those who treat it as a wrong. Then there will soon be an end of it, and that end will be its "ultimate extinction." Whenever the issue can be distinctly made, and all extraneous matter thrown out so that men can fairly see the real difference between the parties, this controversy will soon be settled, and it will be done peaceably too. There will be no war, no violence. It will be placed again where the wisest and best men of the world placed it. Brooks of South Carolina once declared that when this Constitution was framed its framers did not look to the institution existing until this day. When he said this, I think he stated a

fact that is fully borne out by the history of the times. But he also said they were better and wiser men than the men of these days, yet the men of these days had experience which they had not, and by the invention of the cotton-gin it became a necessity in this country that slavery should be perpetual. I now say that, willingly or unwillingly—purposely or without purpose, Judge Douglas has been the most prominent instrument in changing the position of the institution of slavery,—which the fathers of the government expected to come to an end ere this, and putting it upon Brooks's cotton-gin basis; placing it where he openly confesses he has no desire there shall ever be an end of it.

I understand I have ten minutes yet. I will employ it in saying something about this argument Judge Douglas uses, while he sustains the Dred Scott decision, that the people of the Territories can still somehow exclude slavery. The first thing I ask attention to is the fact that Judge Douglas constantly said, before the decision, that whether they could or not, was a question for the Supreme Court. But after the court had made the decision he virtually says it is not a question for the Supreme Court, but for the people. And how is it he tells us they can exclude it? He says it needs "police regulations," and that admits of "unfriendly legislation." Although it is a right established by the Constitution of the United States to take a slave into a Territory of the United States and hold him as property, yet unless the Territorial Legislature will give friendly legislation, and more especially if they adopt unfriendly legislation, they can practically exclude him. Now, without meeting this proposition as a matter of fact, I pass to consider the real constitutional obligation. Let me take the gentleman who looks me in the face before me, and let us suppose that he is a member of the Territorial Legislature. The first thing he will do will be to swear that he will support the Constitution of the United States. His neighbor by his side in the Territory has slaves and needs Territorial legislation to enable him to enjoy that constitutional right. Can he withhold the legislation which his neighbor needs for the enjoyment of a right which is fixed in his favor in the Constitution of the United States which he has sworn to support? Can he withhold it without violating his oath? And, more especially, can he pass unfriendly legislation to violate his oath? Why, this is a monstrous sort of talk about the Constitution of the United States! There has never been as outlandish or lawless a doctrine from the mouth of any respectable man on earth. I do not believe it is a constitutional right to hold slaves in a Territory

of the United States. I believe the decision was improperly made and I go for reversing it. Judge Douglas is furious against those who go for reversing a decision. But he is for legislating it out of all force while the law itself stands. I repeat that there has never been so monstrous a doctrine uttered from the mouth of a respectable man.

I suppose most of us (I know it of myself) believe that the people of the Southern States are entitled to a Congressional Fugitive Slave law,—that is a right fixed in the Constitution. But it cannot be made available to them without Congressional legislation. In the Judge's language, it is a "barren right," which needs legislation before it can become efficient and valuable to the persons to whom it is guaranteed. And as the right is constitutional, I agree that the legislation shall be granted to it, and that not that we like the institution of slavery. We profess to have no taste for running and catching niggers, at least, I profess no taste for that job at all. Why then do I yield support to a Fugitive Slave law? Because I do not understand that the Constitution, which guarantees that right, can be supported without it. And if I believed that the right to hold a slave in a Territory was equally fixed in the Constitution with the right to reclaim fugitives, I should be bound to give it the legislation necessary to support it. I say that no man can deny his obligation to give the necessary legislation to support slavery in a Territory, who believes it is a constitutional right to have it there. No man can, who does not give the Abolitionists an argument to deny the obligation enjoined by the Constitution to enact a Fugitive State law. Try it now. It is the strongest Abolition argument ever made. I say if that Dred Scott decision is correct, then the right to hold slaves in a Territory is equally a constitutional right with the right of a slaveholder to have his runaway returned. No one can show the distinction between them. The one is express, so that we cannot deny it. The other is construed to be in the Constitution, so that he who believes the decision to be correct believes in the right. And the man who argues that by unfriendly legislation, in spite of that constitutional right, slavery may be driven from the Territories, cannot avoid furnishing an argument by which Abolitionists may deny the obligation to return fugitives, and claim the power to pass laws unfriendly to the right of the slaveholder to reclaim his fugitive. I do not know how such an argument may strike a popular assembly like this, but I defy anybody to go before a body of men whose minds are educated to estimating evidence and reasoning, and show that there is an iota of difference between the

constitutional right to reclaim a fugitive and the constitutional right to hold a slave, in a Territory, provided this Dred Scott decision is correct, I defy any man to make an argument that will justify unfriendly legislation to deprive a slaveholder of his right to hold his slave in a Territory, that will not equally, in all its length, breadth, and thickness, furnish an argument for nullifying the Fugitive Slave law. Why, there is not such an Abolitionist in the nation as Douglas, after all!

*** END OF THE PROJECT GUTENBERG EBOOK THE PAPERS AND
WRITINGS OF ABRAHAM LINCOLN — VOLUME 4: THE LINCOLN-
DOUGLAS DEBATES ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of

the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide

access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the

electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE

LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability,

costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other

ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.